

THE DIRTY WORK OF EXECUTIONERS
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ABSTRACT

The Supreme Court has insisted that, because the death penalty is constitutional, there must be a way to carry it out. For the death penalty to function, there must be executioners. Execution participants handle society's dirty work. They have a unique experience because they both inflict and experience state cruelty. Despite practices intended to diffuse moral responsibility in state killing, execution work may contribute to stigma and dignitary harms. Execution participants experience moral disengagement, dehumanization, and mental health problems, including post-traumatic stress disorder, anxiety, substance abuse, and secondary trauma. Legal scholars, commentators, and legislators have suggested that these harms should receive greater scrutiny in litigation and discourse addressing capital punishment and abolition.

This Article argues for an expansion of the constitutional understanding of cruelty by drawing on the concepts of dirty work and moral injury. Prohibitions on cruel and unusual punishments, which protect human dignity, are properly understood to reach the effects of a punishment. This Article argues that those effects should include the impact of punishment on both the punished and the punishers. People facing execution should be able to challenge state capital punishment practices with evidence of that cruelty. The harm execution participants experience is relevant to method-of-execution claims and a powerful argument for abolishing the death penalty. This Article offers constitutional arguments applying both the Eighth Amendment and state constitutional law and concludes that the cruelty associated with punishment should include not just the cruelty inflicted upon the punished, but the cruelty and degradation inflicted upon the punisher.

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TABLE OF CONTENTS

Abstract	1
Table of Contents	2
I. Introduction	2
II. Death, Dirty Work, and Moral Injury	6
A. Executions are Dirty Work	9
B. The Harms of Punishing	14
C. Voluntariness.....	23
III. Punishment, Cruelty, and Punishers	25
A. Conceptualizing Punishers’ Harms	25
B. Cruelty, Dignity, and Inflicting Punishment	27
IV. The Cruel Effects of Punishment	32
A. Standing to Litigate Punishers’ Harms.....	32
B. Constitutional Arguments	36
1. Method-of-Execution Litigation under 42 U.S.C. § 1983	36
2. Constitutional Abolition	41
3. Legislative Abolition.....	48
C. The Effects of Considering Punishers’ Harms	50
V. Conclusion	53

I. INTRODUCTION

In July 2022, the Oklahoma Court of Criminal Appeals (OCCA) set execution dates for over half the population of Oklahoma’s death row.¹ The Oklahoma

¹ See *Oklahoma Court Schedules 25 Executions Between August 2022 and December 2024*, DEATH PENALTY INFO. CTR. (July 6, 2022), <https://deathpenaltyinfo.org/news/oklahoma-court-schedules-25-executions-between-august-2022-and-december-2024>. Oklahoma had not carried out an execution since 2015, when it suspended executions after a series of errors. See Sean Murphy, *Oklahoma Executes Inmate Who Dies Vomiting and Convulsing*, AP (Oct. 28, 2021, 8:36pm CDT), <https://apnews.com/article/us-supreme-court-prisons-executions-oklahoma-oklahoma-attorney-generals-office-6e5eedd1956a38f83db96187651f145c>; THE REPORT OF THE OKLAHOMA DEATH PENALTY REVIEW COMMISSION 186–94 (2017), https://drive.google.com/file/d/0B-Vtm7xVJVWONmdNMmM5bzk3Qnc/view?resourcekey=0-8O6dUUFJrmZxHuUU5oLB_A. A federal district court ruled in 2022 that Oklahoma’s execution protocol did not violate the Eighth Amendment. See *Glossip v. Chandler*, No. CIV-14-0665-F, 2022 WL 1997194, at *21 (W.D. Okla. June 6, 2022). During that litigation, Oklahoma had conducted four executions. *Id.* at *4.

Department of Corrections (ODC) was initially scheduled to carry out twenty-five executions over twenty-nine months, with intervals of four weeks between executions.² Between October 2021 and January 2023, Oklahoma executed eight people.³

In January 2023, the Attorney General of Oklahoma filed a motion in the OCCA to reschedule executions at sixty-day intervals because “the current pace of executions is unsustainable in the long run, as it is unduly burdening the [ODC] and its personnel.”⁴ A letter from former Oklahoma corrections officials sent to the Attorney General that January had urged the Attorney General to spread out executions, describing the “psychological toll of carrying out a death sentence,” and highlighting the risk of error from a “compressed execution schedule” and current staffing shortages.⁵ The letter asserted that “correctional staff have communicated privately with visiting defense mental health experts about the distress they are experiencing due to the nonstop executions.”⁶ The OCCA granted the request and the ODC only carried out three more executions in 2023.⁷

As 2024 began, the Attorney General and Executive Director of the ODC sought additional time between executions.⁸ Executions are labor intensive, but the Director also argued that spreading out executions “protects our team’s mental health and allows time for them to process and recover between the scheduled executions.”⁹ During the hearing on that motion, Judge Lumpkin complained that the delays “need

² Kim Bellware, *Oklahoma Plans to Execute an Inmate Nearly Every Month Until 2025*, WASH. POST (July 2, 2022), <https://www.washingtonpost.com/nation/2022/07/02/oklahoma-25-executions/>.

³ Oklahoma executed John Grant, Bigler Stouffer, Donald Grant, Gilbert Postelle, James Coddington, Benjamin Cole, Richard Fairchild, and Scott Eizember. See *Execution Database*, DEATH PENALTY INFO. CTR. (last visited July 3, 2024), <https://deathpenaltyinfo.org/database/executions?year=2021&year=2022&year=2023&state=Oklahoma&federal=No>.

⁴ See *In re: The Setting of Execution Dates in Richard Eugene Glossip et al.*, Nos. D-2005-310, D-1996-369, D-2006-627, D-2004-1097, D-2000-886, D-2003-1120 & D-2005-1081, at 3 (Ok. Ct. Crim. App. Jan 17, 2023) (on file with author).

⁵ Letter from Former Oklahoma Department of Corrections Officials to Gentner Drummond, Attorney General of Oklahoma (Jan. 13, 2023) (on file with author); Ashlynd Huffman, *‘Relentless Pace’ of Oklahoma Executions Traumatized Corrections Staff, Former Directors Say*, OKLAHOMA WATCH (Feb. 16, 2023), <https://oklahomawatch.org/2023/02/16/relentless-pace-of-oklahoma-executions-traumatized-corrections-staff-former-directors-say/>.

⁶ Letter From Former Oklahoma Department of Corrections Officials, *supra* note 5.

⁷ Derrick James, *OCCA Grants Motion to Allow More Time Between Executions*, MCALESTER NEWS-CAPITAL (Jan. 24, 2023), https://www.mcalesternews.com/news/occa-grants-motion-to-allow-more-time-between-executions/article_0bcd432-9c23-11ed-9dee-8b8409cd6268.html. Oklahoma executed Jemaine Cannon, Anthony Sanchez, and Phillip Hancock in July, September, and November 2023. See *Execution Database*, *supra* note 3.

⁸ *In Re: The Setting of Execution Dates In: Richard Norman Rojem, Emmanuel Littlejohn, Kevin Ray Underwood, Wendell Arden Grissom, Tremaine Wood, and Kendrick Antonio Sampson*, Nos. D-2007-660, D-2000-1609, D-2008-319, D-2008-595, D-2005-171 & D-2007-1055, at 5 (Ok. Ct. Crim. App. Jan 30, 2024) (on file with author).

⁹ Kaylee Douglas, *Attorney General, ODOC Director Want 90 Days Between Executions*, KFOR (Jan. 30, 2024), <https://kfor.com/news/local/attorney-general-odoc-director-want-90-days-between-executions/>.

to stop” and “people need to suck it up, realize they have a hard job to do, and get it done in a timely, proficient, professional way.”¹⁰

The OCCA concluded it would set execution dates individually with ninety-day intervals.¹¹ Judge Lumpkin wrote separately, critiquing the ODC’s leadership and observing that “[i]ndividuals in many professions face demanding and arduous duties as part of their job requirements. Personnel in our military continuously face life or death situations, but they step up each day and do their duty.”¹² Oklahoma carried out six executions in 2024 and 2025.¹³

These events in Oklahoma illustrate a persistent problem of capital punishment: if the government wants to execute, someone has to kill. Executioners have had an uneasy role in human society. Cesare Beccaria observed that “the attitudes of indignation and contempt with which everyone views the hangman” revealed a great deal about the death penalty, even though the executioner was “an innocent executor of the public will, a good citizen who contributes the public good, an instrument as necessary to public security at home as valiant soldiers are abroad.”¹⁴ Despite their societal function, executioners have been ostracized.¹⁵ At other times they achieve notoriety.¹⁶ More recently, state laws conceal their identities.¹⁷

Execution participants have a unique experience in both inflicting and experiencing state cruelty. They perform what sociologist Everett Hughes described as society’s “dirty work.”¹⁸ This, as Eyal Press explains, is “unseen labor that is

¹⁰ Ashlynd Huffman, *A Judge Says ‘Suck it Up’ After Executions Put Strain on Oklahoma Prison Staff*, THE FRONTIER (Mar. 28, 2024), <https://www.readfrontier.org/stories/a-judge-says-suck-it-up-after-executions-put-strain-oklahoma-prison-staff/>.

¹¹ In re: The Setting of Execution Dates, at 5 (Ok. Ct. Crim. App. May 7, 2024) (on file with author).

¹² *Id.* at 3–4 (Lumpkin, J., concurring in part and dissenting in part).

¹³ See *Execution Database*, *supra* note 3.

¹⁴ CESARE BECCARIA, ON CRIMES AND PUNISHMENTS AND OTHER WRITINGS 56 (Aaron Thomas, ed.) (Aaron Thomas & Jeremy Parzen, trans.) (Univ. Toronto Press, 2008)

¹⁵ See STUART BANNER, THE DEATH PENALTY: AN AMERICAN HISTORY 36 (2002) (“In England and elsewhere in Europe, death sentences were carried out by professional executioners, specialists loathed by the public.”); BECCARIA, *supra* note 14, at 56 (discussing public perceptions of executioners); JOHN D. BESSLER, CRUEL & UNUSUAL: THE AMERICAN DEATH PENALTY AND THE FOUNDERS’ EIGHTH AMENDMENT 262 (2012) (describing public sentiment towards executioners); JOEL F. HARRINGTON, THE FAITHFUL EXECUTIONER: LIFE AND DEATH, HONOR AND SHAME IN THE TURBULENT SIXTEENTH CENTURY xxv (2013); Markus Dirk Dubber, *The Pain of Punishment*, 44 BUFF. L. REV. 545, 551 (1996) (describing historical stigma attached to execution work).

¹⁶ See BANNER, *supra* note 15, at 194–95; Francisco Garcia, *The Puzzling Afterlife of Britain’s Last Executioner*, FIN. TIMES (Feb. 8, 2024), <https://www.ft.com/content/754d511d-2c08-437d-b3a9-c09e2c69533d>; Edward White, *The Bloody Family History of the Guillotine*, THE PARIS REV. (Apr. 6, 2018), <https://www.theparisreview.org/blog/2018/04/06/the-bloody-family-history-of-the-guillotine/>; ROBERT JOHNSON, DEATH WORK: A STUDY OF THE MODERN EXECUTION PROCESS 39 (2005).

¹⁷ ROBIN KONRAD, BEHIND THE CURTAIN: SECRECY AND THE DEATH PENALTY IN THE UNITED STATES 14–16 (2018), <https://dpic-cdn.org/production/documents/pdf/SecrecyReport-2.f1560295685.pdf?dm=1683576587>; William W. Berry & Meghan J. Ryan, *Cruel Techniques, Unusual Secrets*, 78 OHIO ST. L.J. 403, 423 (2017).

¹⁸ Everett C. Hughes, *Good People and Dirty Work*, 10(1) SOCIAL PROBS. 3 (1962); Everett C. Hughes, *Work and the Self*, in SOCIAL PSYCHOLOGY AT THE CROSSROADS 313, 319 (J.H. Rohrer & M. Sherif, eds.,

necessary to society, work that many people see as morally compromised and that is even more hidden from view.”¹⁹ Dirty work may produce stigma, dignitary harms, secondary trauma, posttraumatic stress disorder (PTSD), and moral injury.²⁰ Execution participants have reported such harm from their work, including secondary trauma, insomnia, PTSD, anxiety, and depression.²¹ Legal scholars, commentators, and legislators have suggested that the harms of execution work should be considered in capital punishment litigation and abolition efforts.²² Some execution participants have become advocates for abolition.²³ This Article draws on this scholarship to identify and develop constitutional arguments about punishment and cruelty that assess the harm executioners experience. A more complete understanding of cruelty includes those who inflict punishment and their role within punishment institutions and practices.

This Article makes several contributions to the academic literature addressing capital punishment and executioners. First, it argues for an expansion of the concept of cruelty in a constitutional sense by drawing on concepts of dirty work and moral injury. Cruelty should encompass both the experiences of the person being executed

1951); EYAL PRESS, *DIRTY WORK: ESSENTIAL JOBS AND THE HIDDEN TOLL OF INEQUALITY IN AMERICA* 5 (2021).

¹⁹ PRESS, *supra* note 18 at 7.

²⁰ *Id.* at 8–9

²¹ See *infra* Section II.B.

²² See JOHNSON, *supra* note 16, at 219; ROBERT M. BOHM, *CAPITAL PUNISHMENT’S COLLATERAL DAMAGE* (2013); STEPHEN TROMBLEY, *THE EXECUTION PROTOCOL* (1992); ROBERT JAY LIFTON & GREG MITCHELL, *WHO OWNS DEATH? CAPITAL PUNISHMENT, THE AMERICAN CONSCIENCE, AND THE END OF EXECUTIONS* (2000); Susan A. Bandes, *What Executioners Can—and Cannot—Teach Us About the Death Penalty*, 35(3) CRIM. JUST. ETHICS 183, 186–87 (2016) (asserting that executioners’ experiences provide insights into the legitimacy and morality of capital punishment); Lauren M. De Lilly, Note, “*Antithetical to Human Dignity*”: *Secondary Trauma, Evolving Standards of Decency, and the Unconstitutional Consequences of State-Sanctioned Executions*, 23 S. CAL. INTERDISC. L.J. 107 (2014); Robert Johnson, Sandra McGunigall-Smith, Jocelyn Fontaine, & Christopher Dunn, *Life Under Sentence of Death: Some Research Agendas*, in *THE FUTURE OF AMERICA’S DEATH PENALTY* 469, 472–74 (Charles S. Lanier, William J. Bowers & James R. Acker, eds., 2009) (advocating for research into the experiences of correctional officers and execution participants); Kristine Phillips, *Despite Bipartisan Support, Bill to End Death Penalty Died Without a Committee Hearing*, INDIANAPOLIS STAR (Feb. 4, 2025), <https://www.indystar.com/story/news/politics/2025/02/04/death-penalty-repeal-bill-bipartisan-support-indiana-execution-abolition-prisoners-mike-braun/77970791007/> (sponsor of bill to end death penalty in Indiana identified the “psychological toll on state employees tasked with carrying out an execution” as his “biggest problem with the death penalty”).

²³ See Letter from Corrections Professionals to Members of the Colo. Gen. Assembly (Jan. 27, 2020) (on file with the author) (hereinafter Letter from Corrections Professionals) (advocating for repeal of the death penalty); LIFTON & MITCHELL, *supra* note 22, at 101–03; VIRGINIA STEM OWENS & DAVID CLINTON OWENS, *LIVING NEXT DOOR TO THE DEATH HOUSE* 178–79 (2003); Jason Silverstein, *Ron McAndrew is Done Killing People*, ESQUIRE (Jan. 14, 2014), <https://www.esquire.com/news-politics/news/a26833/ron-mcandrew-is-done-killing-people/>; Frank Thompson, *Ex-warden: Death Penalty Doesn’t Make Guards Safer*, THE NEWS JOURNAL (Apr. 1, 2015), <https://www.delawareonline.com/story/opinion/contributors/2015/04/01/ex-warden-death-penalty-make-guards-safer/70791272/>; (“[A]s a former warden who has carried out two executions, I can honestly say that the death penalty just isn’t worth the human and financial toll it takes on the state and its employees.”).

and the experience of the executioner. Second, it develops arguments about the effects of punishment on punishers. Executioners are not being punished, but if cruelty is defined by its effect, rather than intent, then that effect should reach more broadly than the immediate target of state cruelty. It argues that constitutional protections against cruel and unusual punishments, which protect human dignity, extend to both how people are punished and the effects on punishers. Third, it addresses third-party standing concerns to permit persons facing execution to litigate about the harm associated with carrying out execution work. Finally, it develops incremental and abolitionist arguments that evaluate the cruel effects of executions on executioners. It also argues for the adoption of a formal principle to prohibit punishments that degrade the dignity of the punished and punishers.

Part II assesses execution practices through the theory of “dirty work” and evaluates the harms associated with carrying out executions, which include moral injury, moral disengagement, and psychological trauma. Part III argues that the unintended, but foreseeable harm to execution participants from executions should be analyzed as a collateral harm of the punishment and that these cruel effects contribute to the cruelty of punishment through dignitary harms. Part IV explains how the cruel effects of punishment on punishers may apply in constitutional challenges to methods of execution and capital punishment. It addresses the utility of these arguments from incrementalist, abolitionist, and legislative perspectives. It also argues for the adoption of a bright-line principle to evaluate punishments: constitutional prohibitions on cruelty forbid punishments that degrade the dignity of the punished and punishers. These arguments may be useful in litigation challenging conditions of confinement and other carceral practices. An understanding of cruelty that encompasses the collateral harms on persons involved in punishment offers new paths to challenge state cruelty.

II. DEATH, DIRTY WORK, AND MORAL INJURY

Execution work is secretive, sensationalized, and misunderstood. As Robert Johnson writes in *Death Work*, “We wonder who would do such grisly work and how they sleep at night.”²⁴

Executioners are not the only prison employees involved in executions.²⁵ Public information officers and correctional officers (COs) observe executions, escort witnesses in and out, and communicate with the media.²⁶ Other COs conduct the

²⁴ JOHNSON, *supra* note 16, at 125.

²⁵ See Ed Pilkington, *Prison Officers Traumatized by Rate of Executions in US Death Penalty States*, THE GUARDIAN (Apr. 28, 2024), <https://www.theguardian.com/world/2024/apr/28/prison-guard-trauma-execution-death-penalty>. (“It’s not just those working the IVs and injections. You’ve got case managers, correctional officers, staff working with surviving victims, others working with the family of the soon-to-be executed.”).

²⁶ See Mona Lynch, *The Disposal of Inmate #85271: Notes on a Routine Execution*, in 20 STUDIES IN LAW, POLITICS AND SOCIETY 3, 16–17 (Austin Sarat & Patricia Ewick, eds., 2000); Lizzie Seal, Florence Seemungal & Lynsey Black, *Death Penalty and its Impact on the Professionals Involved in the*

“death watch,” during which they observe the condemned in a holding cell near the death chamber.²⁷ COs on the “tie down team” escort the condemned that holding cell to the death chamber and strap them down.²⁸ Members of the “IV team” insert intravenous lines for lethal injection.²⁹ Other employees mix drugs or prepare equipment.³⁰ The warden of the prison or other official may observe the execution, prompt the condemned for their last words, and direct the execution to begin, among other tasks.³¹ Executioners push syringes of drugs, pull the switch on the electric chair, turn on the gas, or fire a rifle. A physician may be present to pronounce death.³² Other prison employees log each event and step in an execution.³³ They monitor phones for calls about stays or clemency and relay that information.³⁴

The process of joining an execution team varies depending on the role and jurisdiction. COs do participate in executions, as executioners or in other capacities.³⁵ Some members of an execution team may not be corrections employees but are hired solely to perform executions or for specific skills.³⁶ Texas’s “drug team” are not employees of the Texas Department of Criminal Justice.³⁷ Utah’s firing squad is composed of police officers from the jurisdiction where the crime took place who may be recruited or chosen from a pool of willing individuals.³⁸

Execution Process, in DEATH PENALTY AND THE VICTIMS, U.N. HUM. RTS. OFFICE OF HIGH COMM’R, 249, 255–56 (2016).

²⁷ See JOHNSON, *supra* note 16, at 142–43; Lynch, *supra* note 26, at 16–17.

²⁸ See JOHNSON, *supra* note 16, at 126; *Witness to an Execution*, NPR (Oct. 12, 2000), <https://storycorps.org/podcast/storycorps-496-witness-to-an-execution/>.

²⁹ See Alexandra L. Klein, *Nondelegating Death*, 81 OHIO ST. L.J. 923, 937 (2020).

³⁰ See *id.*; CORINNA BARRETT LAIN, *SECRETS OF THE KILLING STATE* 99–100 (2025).

³¹ JOHNSON, *supra* note 16, at 126; Sara Rimer, *Working Death Row: A Special Report; In the Busiest Death Chamber, Duty Carries its Own Burdens*, N.Y. TIMES (Dec. 17, 2000), <https://www.nytimes.com/2000/12/17/us/working-death-row-special-report-busiest-death-chamber-duty-carries-its-own.html>.

³² See Chiara Eisner, *The Death Chamber Doctor’s Dilemma*, THE STATE (Apr. 26, 2022), <https://www.thestate.com/news/state/south-carolina/article260531507.html>; Atul Gawande, *When Law and Ethics Collide—Why Physicians Participate in Executions*, 354(12) N.E. J. MED. 1221, 1222–23 (Mar. 23, 2006).

³³ See Chiara Eisner, *NPR Uncovered Secret Execution Tapes from Virginia. More Remain Hidden*, NPR (Jan. 19, 2023), <https://www.npr.org/2023/01/19/1149547193/secret-execution-tapes-virginia>; Klein, *Nondelegating Death*, *supra* note 29, at 938.

³⁴ *Eisner*, *supra* note 33.

³⁵ See Chiara Eisner, *A Firing Squad Tried to Shoot a Prisoner in the Heart. They Missed, Autopsy Indicates*, NPR (May 8, 2025), <https://www.npr.org/2025/05/08/nx-s1-5389846/firing-squad-south-carolina-death-penalty-execution> (firing squad are corrections employees); Chappell, *supra* note 36; JOHNSON, *supra* note 16, at 126.

³⁶ See Gawande, *supra* note 32, at 1224–28 (summarizing how different medical professionals became involved in executions); Bill Chappell, *Who Performs a Lethal Injection in the U.S.? In Some States, They’re Volunteers*, NPR (Mar. 6, 2024), <https://www.npr.org/2024/03/06/1235290585/lethal-injections-death-penalty-states-volunteers>; *Death Row*, FLA. DEPT OF CORR., <https://www.fdc.myflorida.com/institutions/death-row> (last visited Jan. 6, 2026) (Florida’s executioner is a “private citizen”).

³⁷ Chappell, *supra* note 36.

³⁸ Alexandra L. Klein, *When Police Volunteer to Kill*, 74 FLA. L. REV. 205, 218–19 & 222–23 (2022).

A common misconception is that all execution participants are volunteers. Some jurisdictions do seek volunteers, but others, like Oklahoma, prohibit volunteering.³⁹ Initial and continued participation are voluntary, and participants may opt out.⁴⁰ Prison officials may recruit execution team members from corrections staff.⁴¹ In South Carolina, executioners were “hand-picked” by another corrections employee from “the most responsible” prison staffers.⁴² Execution teams may also seek volunteers whom they approve by a vote, or the team may select people to recruit.⁴³ Employees may also be assigned execution-related duties as part of their job responsibilities.⁴⁴ The former chaplain at the Texas State Penitentiary in Huntsville, Reverend Carroll Pickett, wrote that when Texas resumed executions, they did not seek volunteers, but assigned COs “to serve in capacities that ranged from security to membership on what would come to be called the ‘tie-down team.’”⁴⁵

Available information indicates that selection criteria for execution team members include maturity, competence, and responsibility.⁴⁶ Anecdotal data suggests that the people selecting execution participants want someone who is aware of the moral weight of state killing.⁴⁷ A consistent claim by officials responsible for

³⁹ See JOHNSON, *supra* note 16, at 131; Chappell, *supra* note 36 (Oklahoma execution team members “are asked and cannot volunteer to participate”).

⁴⁰ JOHNSON, *supra* note 16, at 131; TROMBLEY, *supra* note 22, at 223 (“[W]e can opt out at any time and not participate. We are not *made* to do executions.”); *Witness to an Execution*, *supra* note 28 (“And that’s something that we’re not required to do is participate in it. But I do this voluntarily.”).

⁴¹ See Michael J. Osofsky, Albert Bandura & Philip G. Zimbardo, *The Role of Moral Disengagement in the Execution Process*, 29 LAW & HUM. BEHAV. 371, 377 (2005) (execution team members “come from the ranks of individual guards” and the wardens “invite prison guards to join the execution team”); Michael A. Kroll, *The Fraternity of Death*, in FACING THE DEATH PENALTY 16, 19 (Michael L. Radelet, ed., 1989); IVAN SOLOTAROFF, *THE LAST FACE YOU’LL EVER SEE* 32 (2001).

⁴² Chiara Eisner, *They Executed People for the State of South Carolina. For Some, it Nearly Destroyed Them*, THE STATE (Jan. 4, 2022), <https://www.thestate.com/news/local/crime/article254201328.html>.

⁴³ See Lauren Gill & Daniel Moritz-Rabson, *In Alabama, Prison Guards Accused of Violence and Misconduct Carry Out Secretive Executions*, BOLTS (Sept. 24, 2024), <https://boltsmag.org/alabama-execution-team/>; Plaintiffs’ Brief Submitted After Conclusion of Evidentiary Hearing at 18–19, *Morales v. Tilton*, 465 F. Supp. 2d 972 (N.D. Cal. 2006) (Nos. C06219JFRS & C06926JFRS), 2006 WL 3761513 [hereinafter *Morales* Brief].

⁴⁴ See TROMBLEY, *supra* note 22, at 110 (discussing assignments during executions); CLINTON T. DUFFY, 88 MEN AND 2 WOMEN 38 (1962) (witnessing executions was part of Duffy’s job as aide to the warden).

⁴⁵ REV. CARROLL PICKETT & CARLTON STOWERS, *WITHIN THESE WALLS: MEMOIRS OF A DEATH HOUSE CHAPLAIN* 55 (2003).

⁴⁶ Osofsky et al., *supra* note 41, at 377 (executioners should “be level-headed, dependable, and have a record of managing inmates fairly that has earned them the respect of the inmates”); JOHNSON, *supra* note 16, at 131–32 (describing character traits for execution team members); FLA. DEPT OF CORR., *EXECUTION BY LETHAL INJECTION PROCEDURES* 2 (2025), <https://fdc-media.ccplatform.net/content/download/1561/file/FDC-Execution-by-Lethal-Injection-Procedures.pdf> (team warden must be “a person who has demonstrated through experience, training, and good moral character the ability to perform an execution by lethal injection”).

⁴⁷ LIFTON & MITCHELL, *supra* note 22, at 76 (quoting Connecticut corrections official Peter Matos: “I want somebody who’s going to be concerned about what they’re going to do. I don’t want it to have [such] a negative reaction that it’s going to destroy their personal lives, but I want to make sure they understand the consequences of what they’re doing.”).

selecting execution teams in different states is that the ideal member of an execution team is someone who does not want the job.⁴⁸

This work may have serious consequences for participants. Section A defines the phenomenon of “dirty work” and its applicability to execution work. Section B addresses the harms associated with execution work that occur despite practices intended to minimize participants’ sense of moral responsibility for state killing. Although execution participation is voluntary, as Section C explains, that does not insulate participants from harms associated with that work.

A. Executions are Dirty Work

Dirty work, as Hughes described it, is work that may be, or is perceived as, unethical, degrading, or morally tainted.⁴⁹ Press, who has written about dirty workers like prison guards, drone operators, and slaughterhouse workers, defines dirty work as “work that causes substantial harm either to other people or to nonhuman animals and the environment, often through the infliction of violence,” and that “respectable members of society” perceive as “dirty and morally compromised.”⁵⁰ Dirty work may be essential to the “prevailing social order.”⁵¹ It requires a “‘tacit mandate’ from the ‘good people’ who see this work as a necessary part of the social order, but don’t explicitly assent to it and can, if need be, disavow responsibility for it.”⁵² Dirty work requires a “collective unwillingness to know unpleasant facts.”⁵³ As Blake Ashforth and Glen Kreiner explain, “although people may applaud certain dirty work as noble . . . they generally remain psychologically and behaviorally distanced from that work and those who do it, glad that it is someone else.”⁵⁴

Hughes’s initial exploration of dirty work addressed Nazi atrocities and the public’s willingness to tolerate a certain amount of violence to solve what it perceived

⁴⁸ See JOHNSON, *supra* note 16, at 131 (“I wouldn’t want to put a man on the team that would like it. I don’t want nobody who would like to do it. I’d rather have the person not want to do it than have a person who wants to do it.”); Eisner, *Executed*, *supra* note 42 (“Most people think that you pick volunteers for that. That’s the last thing I wanted to do,” Harvey said. ‘Anybody who would volunteer to kill somebody is not somebody I wanted working for me.’”); LIFTON & MITCHELL, *supra* note 22, at 76 (quoting a corrections official as saying that people who volunteer do not “understand” and are people who he “would *not* have as part of the team”). There is also evidence that execution team members have engaged in criminal behavior and misconduct. See Gill & Moritz-Rabson, *supra* note 43 (Alabama execution team includes COs accused of violent behavior); Morales v. Tilton, 465 F. Supp. 2d 972, 979 (N.D. Cal. 2006) (California execution team member disciplined for bringing illegal drugs into a prison); LAIN, *supra* note 30, at 128–30 (discussing qualifications, criminal conduct, and work-related misconduct by executioners in multiple jurisdictions).

⁴⁹ See Hughes, *Good People*, *supra* note 18, at 10; Hughes, *Work and the Self*, *supra* note 18, at 319; PRESS, *supra* note 18, at 5; Blake E. Ashforth & Glen E. Kreiner, “How Can You Do It?: Dirty Work and the Challenge of Constructing a Positive Identity,” 24(3) ACAD. OF MGMT. REV. 413, 414–15 (1999).

⁵⁰ PRESS, *supra* note 18, at 11.

⁵¹ Hughes, *Good People*, *supra* note 18, at 8; PRESS, *supra* note 18, at 5.

⁵² PRESS, *supra* note 18, at 12.

⁵³ Hughes, *Good People*, *supra* note 18, at 6.

⁵⁴ Ashforth & Kreiner, *supra* note 49, at 416.

as a problem—provided it didn’t have to consider the details.⁵⁵ He also drew parallels to prison work: people want something to be done with persons convicted of crimes, but they do not want to think about incarceration.⁵⁶ Hughes suggested that “higher and more expert functionaries” carry out “public wishes,” while others “show a sort of concentrate of those impulses of which we are or wish to be less aware.”⁵⁷

Executions are dirty work and the people who carry them out are dirty workers. While capital punishment is not necessary, if a society chooses to use it, executioners are essential. Beccaria’s observations about the stigma associated with executioners are consistent with dirty work: although an executioner ostensibly carries out the public’s will, the public may believe that only a morally compromised person could do those things on its behalf.⁵⁸ Not everyone involved with executions performs dirty work. Judges, lawyers, law clerks, jurors, and governors are involved in capital punishment and executions, but their roles do not carry the same stigma and are more commonly associated with prestige or civic responsibility.⁵⁹ They do not have to physically participate in or observe executions, which may limit collateral damage associated with state killing.⁶⁰

Dirty workers may be convenient scapegoats for systemic failures.⁶¹ Press observes that corrections employees can be blamed for prison conditions “within which they ultimately had little power and thus deflect[] attention from other social actors with far more sway.”⁶² The same is true of executions. Responsibility for errors or botches can be shifted to execution participants, which makes it easier for state policy makers to retain execution practices without substantive inquiry into whether those practices work the way they’re claimed to.

⁵⁵ Hughes, *Good People*, *supra* note 18, at 7.

⁵⁶ *Id.* at 7–8; *see also* DONALD A. CABANA, DEATH AT MIDNIGHT: THE CONFESSION OF AN EXECUTIONER 111 (1996) (observing that the people of Mississippi did not know where the prison was, probably did not care, and could justify harsh treatment by the assumption that “prison was not to be an easy experience”).

⁵⁶ Hughes, *Good People*, *supra* note 18, at 8.

⁵⁷ *Id.*

⁵⁸ *See* JOHNSON, *supra* note 16, at 125; Ashforth & Kreiner, *supra* note 49, at 414–15 (explaining that dirty work carries physical, social, and moral taint); *see supra* note 14 and accompanying text (discussing Beccaria).

⁵⁹ *See supra* note 15 and accompanying text; Mike Pearl, *What It’s Like to be a Death Row Executioner in America*, VICE (May 17, 2015), <https://www.vice.com/en/article/how-do-you-get-a-job-as-an-executioner-in-america-526/> (discussing executioner stigma). *see also* PRESS, *supra* note 18, at 59–62 (discussing the stigma associated with prison work); Rimer, *supra* note 31. *But see* Robert M. Cover, *Violence and the Word*, 95 YALE L.J. 1601 (1986).

⁶⁰ Bandes, *supra* note 22, at 196–97 (discussing the obligation placed on others to carry out death sentences and the consequences of those demands); Dubber, *supra* note 15, at 585–86 (discussing judicial responsibility shifting in capital punishment). *But see infra* note 401 and accompanying text (discussing the impact of capital punishment on judges, lawyers, and others).

⁶¹ *See* Ashforth & Kreiner, *supra* note 49, at 416.

⁶² PRESS, *supra* note 18, at 65. That is not to say that corrections officers should not be accountable for their violence—but it occurs within a system that, by its structure, tolerates and facilitates conditions that produce that violence. *See* Sharon Dolovich, *Cruelty, Prison Conditions, and the Eighth Amendment*, 84 N.Y.U. L. REV. 881, 930 (2009); PRESS, *supra* note 18, at 61–62.

Hughes initially theorized that dirty workers may be “warped towards perverse punishment and cruelty.”⁶³ But defining dirty workers that way enhances the distance between “good people” and “dirty workers.”⁶⁴ It also obscures the more complicated reasons why people participate in executions—workers are not necessarily interested in inflicting cruelty.⁶⁵ The secrecy associated with execution work makes it difficult to identify team members’ motives for participation.

Dirty work is often hidden from public view, and executions are no exception. Many jurisdictions conceal the identities of execution participants through statutes prohibiting, and in some cases penalizing, disclosure.⁶⁶ Anonymity serves several functions. It ostensibly protects participants from harassment.⁶⁷ Secrecy also facilitates execution work—anonymity may be “crucial” for participation.⁶⁸ Execution participants may use secrecy to compartmentalize their work and personal lives.⁶⁹ Secrecy may protect participants from the stigma associated with their work and simultaneously harm them, making it more difficult for participants to seek support if they experience mental, or emotional problems.⁷⁰

Execution practices reflect the moral challenge of killing on behalf of the state. Both historic and modern practices rely on procedures to spread responsibility among participants, such as the use of a blank by firing squads or an emphasis on teamwork.⁷¹ Studies of execution teams suggest that routinization and teamwork are

⁶³ Hughes, *Good People*, *supra* note 18, at 10.

⁶⁴ David S. Davis, *Good People Doing Dirty Work: A Study of Social Isolation*, 7(2) SYMBOLIC INTERACTION 233, 244–45 (1984).

⁶⁵ See JOHNSON, *supra* note 16, at 128–29; *but see* DAVID R. DOW, EXECUTED ON A TECHNICALITY 158 (2005) (COs and prison officials allegedly chose not to tell Billy Vickers that he had received a stay of execution, intending to provoke serious distress); Clive Stafford Smith, *Killing the Death Penalty with Kindness*, in MACHINERY OF DEATH 269, 269 (David R. Dow & Mark Dow, eds., 2002) (client was given a graphic description of execution by a CO before his execution). Both Alan Miller and Kenneth Smith described treatment during Alabama’s attempt to execute the by lethal injection in 2022 that, at a minimum, reflected indifference to their pain and suffering. See Second Amended Complaint at 22–23 & 34–40, *Smith v. Hamm*, No. 22-CV-00497-RAH (M.D. Ala. Dec. 6, 2022) (on file with author).

⁶⁶ See Chappell, *supra* note 36; KONRAD, *supra* note 17, at 14–16. Some executioners have been publicly identified. See SOLOTAROFF, *supra* note 41, at 26–27 & 176.

⁶⁷ DALE BRUMFIELD, CLOSING THE SLAUGHTERHOUSE 180 (2022); KONRAD, *supra* note 17, at 25; Eric Berger, *Lethal Injection Secrecy and Eighth Amendment Due Process*, 55 B. C. L. REV. 1367, 1416–17 (2014); Deborah W. Denno, *Lethal Injection Chaos Post-Baze*, 102 GEO. L.J. 1331, 1378 (2014); *see also* Eisner, *Death Chamber*, *supra* note 32 (doctor involved in execution received telephone threats after being inadvertently identified).

⁶⁸ SOLOTAROFF, *supra* note 41, at 33; Denno, *Chaos*, *supra* note 67, at 1378.

⁶⁹ See Osofsky et al., *supra* note 41, at 389.

⁷⁰ See Chiara Eisner, *Carrying out executions took a secret toll on workers—then changed their politics*, NPR (Nov. 16, 2022, 4:01 PM), <https://www.npr.org/2022/11/16/1136796857/death-penalty-executions-prison> (discussing the “culture of secrecy” surrounding execution work); JOHNSON, *supra* note 16, at 137 (describing the secrecy associated with executions, which may extend even to family members); Eisner, *Executed*, *supra* note 42.

⁷¹ BANNER, *supra* note 15, at 299 (summarizing responsibility-shifting practices in lethal injection executions); Casey Chiappetta & Robert Johnson, “It’s Not Gonna Leave Any Scars”: Trama and Coping Among Execution Team Members, 101(4) THE PRISON JOURNAL 379, 388–89 (2021) (“Not only does each member of the team share a *reduced* and *equal* proportion of the responsibility of the

intended to alleviate executioner stress.⁷² One study of execution participants in three states found that “task fractionalization,” the process of breaking execution procedures into smaller tasks, assisted participants in diffusing their sense of personal responsibility for killing.⁷³ This strategy is critical: “[T]he focusing on the task at hand enables the member of ‘the team’ to become lost in the successful completion of detail and not be disturbed by the total picture of how he cooperates in killing a person.”⁷⁴ Institutions take other measures: some prohibit COs who work on death row from serving on execution teams, although this is not a universal norm, nor is it strictly followed.⁷⁵ This rule may be in place to prevent earlier negative interactions between CO and prisoner from affecting executions, but it also facilitates detachment; an officer who does not know the person he is executing may well find the task easier.⁷⁶

Execution participants develop individual strategies to justify their actions and minimize personal feelings. Many insist they are just doing a job.⁷⁷ Others emphasize professionalism and the importance of a dignified execution.⁷⁸ Participants also emphasize that responsibility really lies with the public, the government, and the jury that imposed the sentence.⁷⁹ They also rely on appellate and post-conviction processes to resolve any concerns about wrongful executions or

execution, they actively describe and classify it as a team performance.”); Dubber, *supra* note 15, at 563–73 (summarizing responsibility-shifting execution practices); Klein, *Nondelegating Death*, *supra* note 29, at 936–37 & nn. 88–90; TROMBLEY, *supra* note 22, at 119 (discussing collective responsibility in executions); JOHNSON, *supra*, note 16, at 132–33.

⁷² TROMBLEY, *supra* note 22, at 223.

⁷³ Osofsky et al., *supra* note 41, at 385. Task fractionalization is also intended to minimize the risk of error in high-pressure situations. See JOHNSON, *supra*, note 16, at 132.

⁷⁴ JOSEPH B. INGLE, LAST RIGHTS 293 (1990).

⁷⁵ See JOHNSON, *supra* note 16, at 114; Rimer, *supra* note 31; John H. Blume, *On “Death Houses” and “Kill Boxes”: The Death Penalty and Animal Slaughter*, 109 CORNELL L. REV. 1705, 1732–33 (2024). But see *Morales* Brief, *supra* note 43, at 55–56 (describing execution team members in California who also worked on death row).

⁷⁶ *Morales* Brief, *supra* note 43, at 56 (discussing the risk of allowing COs who have had past negative experiences with inmates conducting executions); JOHNSON, *supra* note 16, at 146–47; Rimer, *supra* note 31 (quoting a Texas CO who said it was “better” death row was not at Huntsville, where he worked and where executions took place, because “he and his fellow officers [we]re not helping execute people they know”).

⁷⁷ OWENS & OWENS, *supra* note 23, at 159; HELEN PREJEAN, DEAD MAN WALKING 103 (1993); LIFTON & MITCHELL, *supra* note 22, at 79 (“[W]hen you’re in preparation of actually taking a human life—you have to look into your own self and say, I’m an instrument of the state, I have a job to do, and I chose to do it[.]”); TROMBLEY, *supra* note 22, at 205 (“These people killed somebody. I didn’t. All I’m doing is a job that the state says I should do.”); INGLE, *supra* note 74, at 228–29 (describing a CO asking Ingle to tell the person scheduled for execution that the CO was “just doing [his] job” and that it was “nothing personal”).

⁷⁸ Chiappetta & Johnson, *supra* note 71, at 389–90; Osofsky et al., *supra* note 41, at 389 (emphasis on professionalism in execution practices).

⁷⁹ Eisner, *Executed*, *supra* note 42; Osofsky et al., *supra* note 41, at 385 (“[T]he members of the execution team see themselves as doing society’s work as in any other job in an institutional service facility.”); SOLOTAROFF, *supra* note 41, at 24 (New York’s executioner opposed death penalty, blamed judges & juries); *id.* at 97; DUFFY, *supra* note 44, at 225; PREJEAN, *supra* note 77, at 103; LIFTON & MITCHELL, *supra* note 22, at 78.

fairness.⁸⁰ Team members may review the information about the condemned's offenses to justify their role in his execution.⁸¹ They are, however, aware of the inequity and arbitrariness of capital punishment: COs at the Louisiana State Penitentiary and Alabama's William C. Holman Correctional Facility have expressed unease "that social class and poverty play major roles in determining who is executed" as well as geographic arbitrariness in capital punishment.⁸²

Despite stigma, dirty workers may develop a sense of pride and community. Ashforth and Kreiner, for example, found that some dirty workers have "relatively high occupational esteem and pride."⁸³ Dirty work can create a shared identity that "fosters 'strong' occupational and workgroup culture," allowing dirty workers to affirm personal identities and find meaning in their employment.⁸⁴ In an interview with NPR, Kenneth Dean, then a member of Texas's tie-down team, explained, "Not many people are willing to do this or can do this. I . . . I do believe in what I do."⁸⁵ Johnson's study of an execution team describes support and camaraderie among execution team members.⁸⁶ These "bonds of solidarity" were essential to "hold[ing] an execution team together under the pressures of death work."⁸⁷

Solidarity is not the only consequence of execution work. Press argues that dirty work may be "injurious to the people who do it, leading them either to feel devalued and stigmatized by others or to feel that they have betrayed their own core values and beliefs."⁸⁸ There is widespread recognition of the ethical complexities associated with physician involvement in executions.⁸⁹ By contrast, there is less public engagement with the ethics associated with prison employees' roles in

⁸⁰ BANNER, *supra* note 15, at 299; TROMBLEY, *supra* note 22, at 113 ("I've made peace with myself on this thing by knowing that the fellow that's being executed has had every chance of appeal.").

⁸¹ Kroll, *supra* note 41, at 22; JOHNSON, *supra* note 16, at 147 ("One effective technique the officers use is to remind themselves of the gruesomeness of the condemned prisoner's crime and the justice of his punishment."); LIFTON & MITCHELL, *supra* note 22, at 85 (COs reviewing offenses to provide psychological support); Chiappetta & Johnson, *supra* note 71, at 391–92 (discussing "perceived deservingness" as a coping strategy for execution team members). *But see* OWENS & OWENS, *supra* note 23, at 159 (warden did not review offenses to avoid developing feelings of vengeance).

⁸² Michael Osofsky, *The Psychological Experience of Security Officers Who Work With Executions*, STANFORD UNDERGRADUATE RES. J. 52, 53 (May 2002).

⁸³ See Ashforth & Kreiner, *supra* note 49, at 413.

⁸⁴ *Id.* at 414.

⁸⁵ *Witness to an Execution*, *supra* note 28. For a discussion of whether the role of executioner is one in which there can be pride, see Christopher Bennett, *Considering Capital Punishment as a Human Interaction*, 7 CRIM. L. & PHIL. 367 (2013), and Jeffrie G. Murphy, *People We Hire as Executioners: Who Are They? Who Are We?*, 2(35) CRIM. JUST. ETHICS 87 (2016).

⁸⁶ JOHNSON, *supra* note 16, at 134–36.

⁸⁷ *Id.* at 139.

⁸⁸ PRESS, *supra* note 18, at 11–12; Davis, *supra* note 64, at 244–45; Pilkington, *Traumatized*, *supra* note 25 (quoting remarks from former prison officers and advocates for corrections employees expressing disappointment and frustration with OCCA judges' indifference towards execution workers); Dubber, *supra* note 15, at 573.

⁸⁹ See Gawande, *supra* note 32, at 1223–26; Ty Alper, *The Truth About Physician Participation in Lethal Injection Executions*, 88 N.C. L. REV. 11, 45–46 (2009); *Baze v. Rees*, 553 U.S. 35, 64–66 (2008) (Alito, J., concurring) (highlighting the ethical standards limiting medical professionals' participation in executions).

executions and whether that work might require them to betray core values and beliefs. The ethical conflicts may be more obvious for medical professionals, but they exist for correctional employees. The work of executions carries a human toll that non-participants rarely reckon with in meaningful terms.

B. The Harms of Punishing

This Section draws on studies of execution teams, memoirs, and interviews to describe the impact of execution work. Despite procedural mechanisms intended to minimize responsibility, there is evidence that execution participation produces harm that ranges from dehumanization and disengagement to psychological and emotional trauma.

Johnson describes a process of gradual dehumanization of the condemned that forces them to accept their impending death and facilitates the process for the execution participants.⁹⁰ Everyone involved in an execution, from the condemned to the execution team, experiences dehumanization in a way that is distinct from non-capital punishment.⁹¹ Execution participation generally subsumes the individual into a coordinated system, necessitating “a substantial loss of individuality and choice.”⁹² One participant described himself as a “tool of the state.”⁹³ Johnson asserts that COs “adopt a dehumanized view of themselves and the prisoners” to permit them to do their work.⁹⁴ This “subtle and potentially insidious deadening of feelings for themselves and others,” he writes, is “arguably not unlike the deadening of feelings experienced by many prisoners on the threshold of execution.”⁹⁵ This, he suggests, “allows prison officials to function as impersonal agents of violence while remaining largely unaffected in their personal lives.”⁹⁶ The dehumanization of prisoners is “more extensive and insidious” than that of the COs, but it is a “direct result” of the dehumanization process that COs go through.⁹⁷

But, as Johnson explains, that “deadening” ultimately affects these workers.⁹⁸ One officer related to Johnson that he experienced “emotional numbness” that arose from “taking part in a killing” and “came to affect his entire life.”⁹⁹ He theorized that he had to turn off emotional feelings to go through with his work.¹⁰⁰ Some execution

⁹⁰ See JOHNSON, *supra* note 16, at 155–58 & 207–08.

⁹¹ See *id.* at 207 (explaining that, in executions COs are “cast in the anonymous role of agents of violence, for violence is inherent in their job. They are by definition agents not only of custody, which implies forceful restraint, but also of execution, which entails killing”).

⁹² *Id.* at 207.

⁹³ TROMBLEY, *supra* note 22, at 216.

⁹⁴ JOHNSON, *supra* note 16, at 209.

⁹⁵ Robert Johnson, *Executioners at Work*, in DEATH PENALTY AND THE VICTIMS, *supra* note 26, at 261, 275–76.

⁹⁶ JOHNSON, *supra* note 16, at 8.

⁹⁷ *Id.* at 209.

⁹⁸ Johnson, *supra* note 95, at 276 (interview with an execution team member describing numbness).

⁹⁹ JOHNSON, *supra* note 16, at 180.

¹⁰⁰ *Id.* at 181–82.

participants worry about their detachment, express concern that they do not feel more, or worry about no longer being troubled by participation.¹⁰¹

Participants have described their experience working on executions in terms that reflect dissociation, detachment, or hyperfocus on other tasks to avoid thinking about what they are doing.¹⁰² This hyperfocus permits a “shift from the morality of their activity to the operational details and efficiency of their specific job.”¹⁰³ Johnson describes how COs waiting for an execution to begin “let their minds wander from the grim business at hand; as one officer put it, ‘your mind goes a long ways away.’”¹⁰⁴

Detachment and dehumanization may connect to the process of moral disengagement, when individuals disengage moral self-censure that would ordinarily inhibit them from doing something inconsistent with their personal moral standards, like killing.¹⁰⁵ Moral disengagement appears to be a critical feature to “create[] release from the restraint of self-sanctions for putting a person to death.”¹⁰⁶ This detachment is fostered by institutional processes to make it easier for COs to kill.¹⁰⁷ Individual participants develop their own strategies, but institutional structures facilitate this process through compartmentalization, execution protocols that rely on dehumanization, or, in some situations, permissiveness towards violent behavior.¹⁰⁸

Despite institutional responsibility diffusion and detachment, execution participants experience stress, trauma, and psychological harm. One group of researchers suggested that execution participants may experience secondary trauma, which “refers to the distress, harm, and injuries that are visited upon those other than the condemned.”¹⁰⁹ Participants have reported emotional distress during and after executions.¹¹⁰ Botched and violent executions with visible suffering are

¹⁰¹ Rimer, *supra* note 31; *Witness to an Execution*, *supra* note 28 (quoting a Texas chaplain who expressed that he had not yet “delved into that part of my feelings”); Osofsky et al., *supra* note 41, at 386.

¹⁰² *Morales Brief*, *supra* note 43, at 47–48; SCOTT CHRISTIANSON, *THE LAST GASP* 198 (2010); Rimer, *supra* note 31; Chiappetta & Johnson, *supra* note 71, at 386–87. Dissociation may also be a predictor of PTSD. See RACHEL MACNAIR, *PERPETRATION-INDUCED TRAUMATIC STRESS: THE PSYCHOLOGICAL CONSEQUENCES OF KILLING* 33 (2002).

¹⁰³ Osofsky et al., *supra* note 41, at 386.

¹⁰⁴ JOHNSON, *supra* note 16, at 177.

¹⁰⁵ Osofsky et al., *supra* note 41, at 372; Sharon Dolovich, *Excessive Force in Prison*, 114 J. CRIM. L. & CRIMINOLOGY 415, 435–36 (2024).

¹⁰⁶ Osofsky et al., *supra* note 41, at 390. See also LIFTON & MITCHELL, *supra* note 22, at 77 (“The execution self is morally at odds with his everyday self, since he would not ordinarily have anything to do with killing another person. The execution self performs what is expected of it within the killing institution and in that sense behaves ‘normally.’”).

¹⁰⁷ See JOHNSON, *supra* note 16, at 213 (“Persons whose consciences have been muted by the official authorizations and routines that shape their work as well as by the dehumanization that they too have sustained can then, without guilt, commit violence against that nonperson.”).

¹⁰⁸ JOHNSON, *supra* note 16, at 209; Dolovich, *Excessive*, *supra* note 105, at 419.

¹⁰⁹ Amanda Gil, Matthew B. Johnson & Ingrid Johnson, *Secondary Trauma Associated With State Executions: Testimony Regarding Execution Procedures*, 34 J. PSYCHIATRY & L. 25, 27 (2006); see also De Lilly, *supra* note 22, at 123–24; Chiappetta & Johnson, *supra* note 71, at 382.

¹¹⁰ DUFFY, *supra* note 44, at 101–03; OWENS & OWENS, *supra* note 23, at 161–62 (Texas Warden said it didn’t get easier); LIFTON & MITCHELL, *supra* note 22, at 103 (“You can see the visible effects on the

especially difficult and more likely to produce trauma for execution teams.¹¹¹ Participants have also developed physical and psychological problems, including depression.¹¹² Craig Baxley, who carried out executions for South Carolina, described developing depression and anxiety, feeling guilt, and experiencing serious behavioral and personal changes.¹¹³ Fred Allen participated in over 120 executions in Texas before becoming overwhelmed by his work and stopping.¹¹⁴ Allen observed, “I don’t know if it was mental breakdown. I don’t know if probably it would be classified as more of a traumatic stress, similar to what individuals in war had.”¹¹⁵ A New York executioner, John Hurlbert, who executed 120 people by electrocution in the early Twentieth Century, reportedly “show[ed] signs of a nervous breakdown” and

people that are doing it, especially the warden who has the responsibility in the death house, the trauma that comes.”).

¹¹¹ DUFFY, *supra* note 44, at 9–10; LAIN, *supra* note 30, at 232–33; Thompson, *supra* note 23 (“Many of us who have taken part in this process live with nightmares, especially those of us who have participated in executions that did not go smoothly.”); 12:01 *The Death Penalty In Context*, Ron McAndrew, Former Florida Warden Who Presided Over Executions, DEATH PENALTY INFO. CTR. (Apr. 27, 2023), <https://deathpenaltyinfo.org/resources/podcasts/discussions-with-dpic/ron-mcandrew-former-florida-warden-who-presided-over-executions> (describing the botched execution of Pedro Medina as “traumatic for everybody”); Ray, *supra* note 112; *Bucklew* Amicus, *supra* note 112, at 8; Seal et al., *supra* note 26, at 250. See also JAMES S. LIEBMAN & THE COLUMBIA DELUNA PROJECT, THE WRONG CARLOS: ANATOMY OF A WRONGFUL EXECUTION 300–01 (2014) (describing a chaplain’s trauma after realizing that an execution was botched).

¹¹² Blume, *supra* note 75, at 1731–32; Seal et al., *supra* note 26, at 250; Walter C. Long, *The Death Penalty as a Public Health Problem*, in DEATH PENALTY AND THE VICTIMS, *supra* note 26, at 304, 316; Gayle Ray, *Lethal Injection Drug Puts Corrections Employees at Risk*, THE TENNESSEAN (Aug. 6, 2018), <https://www.tennessean.com/story/opinion/2018/08/06/lethal-injection-drug-harms-corrections-employees/915548002/>; Eisner, *Executed*, *supra* note 42 (describing the physical and psychological harms associated with executions reported by two former South Carolina executioners); PRISON GUARDS AND THE DEATH PENALTY, PENAL REFORM INTERNATIONAL 2–3 (2015); SOLOTAROFF, *supra* note 41, at 184–85; BRUMFIELD, *supra* note 67, at 180 (prison employee “claimed that participating in the execution of Frank Coppola sent him into a spiral of PTSD-induced drug and alcohol abuse” that ultimately sent him to prison); Eisner, *Carrying*, *supra* note 70 (describing psychological and emotional harms associated with execution participation); RUSS FORD, CHARLES PEPPERS & TODD C. PEPPERS, CROSSING THE RIVER STYX 110 (2023) (CO says that everyone experiences physiological pain and reports a flashback at a barbeque after having participated in an electric chair execution); Ed Pilkington, *Eight Executions in 11 Days: Arkansas Order May Endanger Staff’s Mental Health*, THE GUARDIAN (Mar. 29, 2017), <https://www.theguardian.com/world/2017/mar/29/arkansas-executioners-mental-health-allen-ault> (discussing psychological harms associated with executions); Brief of Amici Curiae Former Corrections Officials Supporting Petitioner at 5, *Bucklew v. Precythe*, 587 U.S. 119 (2019) (No. 17-8151), 2018 WL 3546329 [hereinafter *Bucklew* Amicus]; THERE WILL BE NO STAY (Through a Glass Prods., 2016) (describing psychological harms associated with executions); Michael Osofsky, *The Psychological Experience of Security Officers Who Work With Executions*, SURJ 52, 53 (May 2002); Michael Daly, *I Committed Murder*, NEWSWEEK (Sept. 25, 2011), <https://www.newsweek.com/i-committed-murder-67463>.

¹¹³ Eisner, *Executed*, *supra* note 42.

¹¹⁴ OWENS & OWENS, *supra* note 23, at 176–77; DITTE MARIE MUNCH-JURISIC, PERPETRATOR DISGUST 127–28 (2023); Stacy Abramson & David Isay, *The Stopping Point: Interview With a Tie-Down Officer*, in MACHINERY OF DEATH, *supra* note 65, at 169, 170.

¹¹⁵ Abramson & Isay, *supra* note 114, at 171.

eventually resigned his position without notice.¹¹⁶ Others have reported substance abuse problems arising from the stress of execution participation.¹¹⁷ Some executioners have died by suicide.¹¹⁸

Another risk of execution participation is PTSD.¹¹⁹ Witnessing violence or death, killing someone, or seriously harming another person are stressors strongly associated with the development of PTSD.¹²⁰ Rachel MacNair theorizes that executioners experience a form of PTSD that she describes as Perpetration-Induced Traumatic Stress (PITS).¹²¹ She surveys accounts from executioners and concludes that some appear to display symptoms consistent with PTSD and PITS, although further study is needed.¹²²

Execution participants have had nightmares about executions and the people they executed.¹²³ They may experience trouble sleeping.¹²⁴ Members of execution teams have described unwanted recollections, images, or thoughts about executions.¹²⁵ Justin Jones, a former director of corrections for the Oklahoma Department of Corrections, witnessed twenty-seven executions and was responsible for giving the order to initiate executions.¹²⁶ He described being “haunted” and “has

¹¹⁶ CRAIG BRANDON, *THE ELECTRIC CHAIR* 220 (1999)

¹¹⁷ Thompson, *supra* note 23; Eisner, *Carrying*, *supra* note 70; Silverstein, *supra* note 23; MACNAIR, *supra* note 102, at 38 (James Berry, English Victorian-Era hangman who did not drink, began drinking heavily after becoming a hangman).

¹¹⁸ BRANDON, *supra* note 116, at 221; Pilkington, *Eight Executions*, *supra* note 112; THERE WILL BE NO STAY, *supra* note 112 (discussing executioners and suicide); Eisner, *Executed*, *supra* note 42 (a former executioner for South Carolina died by suicide); Seal et al., *supra* note 26, at 254.

¹¹⁹ Gil, et al., *supra* note 109, at 27. PTSD is a mental health condition that can be caused by witnessing or experiencing stressful, violent, or traumatic events that can produce a wide range of symptoms, including flashbacks, anxiety, dissociation, and mood or behavior changes. See AM. PSYCH. ASS’N, *DIAGNOSTIC & STATISTICAL MANUAL OF MENTAL DISORDERS* 274 (5th ed. 2013) [hereinafter DSM-V].

¹²⁰ DSM-V, *supra* note 109, at 278 (describing peritraumatic factors associated with PTSD); Gil et al., *supra* note 109, at 27; MACNAIR, *supra* note 102, at 3; PRESS, *supra* note 18, at 110; Nathan Gabriel Wood, *Proportionality and Combat Trauma*, 181 *PHILOSOPHICAL STUDS.* 513, 519 (2024).

¹²¹ See MACNAIR, *supra* note 102, at 32–33. PITS shares “symptomatology of PTSD at clinical or subclinical levels which result from situations that would be traumatic if someone were a victim, but situations for which the person in question was a causal participant.” *Id.* at 7.

¹²² *Id.* at 42.

¹²³ SOLOTAROFF, *supra* note 41, at 180–81, 187–88 (describing Donald Hocutt’s nightmares about Leo Edwards); *Bucklew Amicus*, *supra* note 112, at 7; Silverstein, *supra* note 23 (describing Ron McAndrew’s nightmares about the people he executed); Tony Rehagen, *Q&A With Allen Ault*, ATLANTA MAGAZINE (Dec. 1, 2011), <https://www.atlantamagazine.com/travel-other/qa-with-allen-ault1/> (Allen Ault’s nightmares); Eisner, *Executed*, *supra* note 42; Ron McAndrew, *Executions Inflict Devastating Trauma on Florida’s Correctional Workers*, MIAMI HERALD (Feb. 22, 2023), <https://www.miamiherald.com/opinion/op-ed/article272563934.html>.

¹²⁴ JOHNSON, *supra* note 16, at 179–80 (discussing the aftermath of executions); Eisner, *Executed*, *supra* note 42.

¹²⁵ MACNAIR, *supra* note 102, at 35–36; Osofsky et al., *supra* note 41, at 390; Johnson, *supra* note 95, at 275; see also DSM-V, *supra* note 109, at 275 (symptoms of PTSD include “recurrent, involuntary, and intrusive recollections of the event”).

¹²⁶ Pilkington, *Traumatized*, *supra* note 25.

made a point of forgetting the deceased prisoners' names to protect himself."¹²⁷ Team members have resigned, rather than continue to carry out executions.¹²⁸

Training and preparing for executions produce additional stressors. Participants may have to take turns role-playing as the condemned in execution rehearsals, which produce fear, stress, and anxiety in participants and other prison employees.¹²⁹ Corrections employees in Oklahoma were distressed by the rehearsals associated with the state's packed execution schedule.¹³⁰

Although COs may, as Johnson has observed, form "calculated and superficial" relationships during the last few days of a prisoner's life to ensure compliance, human connections persist.¹³¹ Johnson describes an officer touching a prisoner's hand "in a gesture of farewell" after walking him to the death chamber: "This personal touch in the midst of an impersonal procedure was, in the warden's opinion, an attempt to help the officer himself live with the death penalty."¹³² These human connections and interactions may console the condemned, but heighten participants' distress, even for COs who do not participate in executions.¹³³ Donald Cabana, former warden at the Mississippi State Penitentiary developed a friendship with Connie Evans, and described intense anguish during and after Evans's execution.¹³⁴ Corrections employees may also find it painful when the state plans to execute someone they

¹²⁷ *Id.*

¹²⁸ Pilkington, *Eight Executions*, *supra* note 112; Semon Frank Thompson, *What I Learned From Executing Two Men*, N.Y. TIMES (Sept. 15, 2016), <https://www.nytimes.com/2016/09/18/opinion/sunday/what-i-learned-from-executing-two-men.html>; *Witness to an Execution*, *supra* note 28 ("I've had guards — lots of guards quit. Even those tough guards you talk about. A lot of those quit. Some of them couldn't take it. Some of them couldn't take it.").

¹²⁹ SOLOTAROFF, *supra* note 41, at 81; Eisner, *Carrying*, *supra* note 70 (interview with Catarino Escobar, a former CO in Nevada who described extreme terror: "for what felt like 20 minutes, he was absolutely certain his life was over. . . . 'I believed that I was being executed.'"); CABANA, *supra* note 56, at 162–63 (describing stress of person pretending to be executed); JOHNSON, *supra* note 16, at 133–34 (describing the feeling of "helplessness" when staff take on the role of prisoner in training); Pilkington, *Traumatized*, *supra* note 25. Mock executions are widely considered to be a form of torture. See JOHN D. BESSLER, *THE DEATH PENALTY AS TORTURE* 226 (2017).

¹³⁰ See *supra* notes 5–6 and accompanying text.

¹³¹ Johnson, *supra* note 95, at 273.

¹³² JOHNSON, *supra* note 16, at 176.

¹³³ See JOHNSON, *supra* note 16, at 209; Russell F. Canan, *Burning at the Wire*, in *FACING THE DEATH PENALTY*, *supra* note 41, at 60, 73 (CO expressed he was "damned glad" he was not executing John Evans because he'd "grown to think that John's all right"); Joseph M. Giarratano, *The Pains of Life*, in *FACING THE DEATH PENALTY*, *supra* note 41, at 193, 196 (discussing COs' discomfort with executions); PREJEAN, *supra* note 77, at 180 (describing a conversation with a CO who is "troubled" by his involvement, dreams about executions, and sees the men on death row as "just little boys inside big men's bodies, little boys who never had much chance to grow up"); Alex Hannaford, *Inmates Aren't the Only Victims of the Prison-Industrial Complex*, THE NATION (Sept. 16, 2014), <https://www.thenation.com/article/archive/inmates-arent-only-victims-prison-industrial-complex/> ("After Taylor was taken from his cell to the waiting prison van, that officer broke down in tears."); Johnson, *supra* note 95, at 268–69; Osofsky et al., *supra* note 41, at 386 ("Efforts to humanize executions can exacerbate the moral anguish of those who would have to perform them. Indeed, to view offenders with dignity and then take their life would extract a heavy emotional toll.").

¹³⁴ See CABANA, *supra* note 56, at 186–90.

believe has been rehabilitated or is not dangerous.¹³⁵ Allen Ault, the former Commissioner of the Georgia Department of Corrections, described the moral conflict arising from executing people he had come to know: “[T]hat becomes very personal. It was no longer an abstraction. And it truly evokes some strong feelings of revulsion. It didn’t feel right, morally. It didn’t seem right.”¹³⁶ Cabana wrote, “[t]here is a part of the warden that dies with his prisoner,” observing that “[b]oth are victims, unwilling captives of a human tragedy”¹³⁷

The emotional and psychological harms arising from execution participation may also be a form of moral injury.¹³⁸ Generally speaking, moral injury has been described as the psychological harm that happens when a person experiences, witnesses, or participates in something that is inconsistent with their moral, ethical, or spiritual beliefs.¹³⁹ Moral injury may arise from betrayal, either because the actor has betrayed their own values or because someone else in a position of authority has betrayed those values.¹⁴⁰ Moral injury was first described by Jonathan Shay, in his work on combat trauma.¹⁴¹ Shay asserted that “moral injury is an essential part of any combat trauma that leads to lifelong psychological injury.”¹⁴² Moral injury has been discussed outside the military context¹⁴³ and has recently appeared in discourse

¹³⁵ LAIN, *supra* note 30, at 233; CABANA, *supra* note 56, at 186 (“Just like me, many of the officers had come to understand another side of Connie (even though the unwritten rules said they should not). Just like me, they had neither forgotten nor excused what he did. But they did not forget that he was a human being, and they were hurting too.”). More recently, over seventy current and former prison employees in Missouri advocated for clemency for Brian Dorsey. Mitch Smith & Ernesto Londoño, *He’s on Death Row for Murders. Prison Workers Say He Should Be Spared*, N.Y. TIMES (Apr. 3, 2024), <https://www.nytimes.com/2024/04/03/us/missouri-death-penalty-brian-dorsey.html>; Timothy Lancaster, *We Corrections Officers Know Brian Dorsey has Changed. Gov. Parson, Don’t Execute Him*, KANSAS CITY STAR (Apr. 1, 2024), https://www.yahoo.com/news/corrections-officers-know-brian-dorsey-100800021.html?guccounter=1&guce_referrer=aHR0cHM6Ly93d3cuZ29vZ2xlLmNvbS8&guce_referrer_sig=AQAAAK0J5q4CSb2csh-Dqmnv_bwaC9ftBANsUGyfxeqcEauQ7LhWOLtRK6nrfL6s_Gm5b-ugWriPP-48KCXKzDwkpDw6uuArokoKLdHlgimTYM1Z3qUzae8_hPuXiaFKCcs9e1waM0VrLj_d3QYq4Kh-ddDg5V_ITboBZ_DUmw0iAPFQP.

¹³⁶ Rehagen, *supra* note 123.

¹³⁷ CABANA, *supra* note 56, at 16.

¹³⁸ See Eisner, *supra* note 39 (discussing moral injury and execution work).

¹³⁹ See Jesse Kirkpatrick, *Moral Injury and Revisionist Just War Theory*, 36(1) ETHICS & INT’L AFFAIRS 27, 27 (2022); Brett T. Litz et al., *Moral Injury and Moral Repair in War Veterans: A Preliminary Model and Intervention Strategy*, 29 CLINICAL PSYCHOLOGY REV. 695, 697 (2009); Hazel R. Atuel et al., *Understanding Moral Injury from a Character Domain Perspective*, 41(3) J. THEORETICAL & PHILOSOPHICAL PSYCH. 155, 162 (2021); Cynthia Geppert, *Moral Injury: The Spirit’s Unseen Wound*, FED. PRACTITIONER 238, 238 (Aug. 2023); Masick, *supra* note 144, at 235.

¹⁴⁰ Jonathan Shay, *Moral Injury*, 16(1) INTERTEXTS 57, 59 (2012) (defining moral injury as a “[b]etrayal of what’s right by someone who holds legitimate authority...in a high stakes situation”).

¹⁴¹ JONATHAN SHAY, *ACHILLES IN VIETNAM* 20 (1994).

¹⁴² *Id.*

¹⁴³ See, e.g., Wendy Dean, *What Law Enforcement Can Learn From Health Care About Moral Injury*, 24(2) AMA J. ETHICS 160 (2022); Shira Maguen et al, *Prevalence of Exposures and Moral Injury in First Responders*, 6(6) J. AM. COLL. OF EMERGENCY PHYSICIANS OPEN 1 (2025); 40: *Public Defenseless: How Moral Injury, Stress, and Trauma Impact Public Defenders w/ Jenny Andrews* (Aug. 24, 2022),

about executioners.¹⁴⁴ Press identifies moral injury as an “occupational hazard” of dirty work.¹⁴⁵

Academic literature has discussed a possible relationship between moral injury and PTSD, but there are disagreements about the nature of that relationship.¹⁴⁶ Some literature suggests that manifestations of moral injury may overlap with symptoms of PTSD.¹⁴⁷ Moral injury is associated with feelings of shame, guilt, self-loathing, suicidal ideation, substance abuse, recklessness, self-sabotage, and depression.¹⁴⁸

Events that may trigger moral injury may include “participating in or witnessing inhumane or cruel actions, failing to prevent the immoral acts of others, as well as engaging in subtle acts or experiencing reactions that, upon reflection transgress a moral code.”¹⁴⁹ Experiencing or causing violence and the aftermath of that violence can be significant factors in moral injury.¹⁵⁰ A person who has a strong moral opposition towards causing violence may feel they have betrayed their own moral code when they must inflict violence on another, especially if the person harmed is vulnerable or if they fail to prevent someone else from engaging in violent behavior towards someone else.¹⁵¹

Some prison officials and employees identify the contradictions between their professional obligation to care for persons in their custody and their role in killing that person.¹⁵² In 1924, for example, a warden in a Texas prison submitted his

<https://www.publicdefenseless.com/episodes/szmxb4mrlx2c9j6-4jls-34txx-jg8d2-nakkr-dyt4t-r8354-hkytz>.

¹⁴⁴ See Eisner, *Executed*, *supra* note 42; MUNCH-JURISIC, *supra* note 114, at 163. For a summary of the development of the theory of moral injury, see Erick D. Masick, *Moral Injury and Preventive Law: A Framework for the Future*, 224 MIL. L. REV. 223 (2016).

¹⁴⁵ PRESS, *supra* note 18, at 110.

¹⁴⁶ Seumas Miller, *Moral Injury, Moral Identity, and “Dirty Hands” in War Fighting & Police Work*, 47 J. MED. & PHILOSOPHY 723, 723 (2022) (noting that the “standard view” is that moral injury is a “species of PTSD; roughly speaking, moral injury is a held to be PTSD in which the moral values of the sufferer have been violated”); Geppert, *supra* note 139, at 238 (moral injury and PTSD are not the same, but a person may have both); Masick, *supra* note 144, at 259–60 (overlaps between moral injury and PTSD, but distinctions between the conditions); Kirkpatrick, *supra* note 139, at 27 (relationship exists between moral injury and PTSD, but there are diagnostic distinctions); Tim Hoyt, *Moral Injury: Wrestling With Definitions and Conceptual Drift*, 2(3) ÆTHER: A JOURNAL OF STRATEGIC AIRPOWER AND SPACEPOWER 60, 67 (2023) (asserting that there is not “clear empirical evidence that PTSD and moral injury are separate and distinct constructs”).

¹⁴⁷ Litz et al., *supra* note 139, at 701; Wood, *supra* note 120, at 521–22; Sonya B. Norman & Shira Maguen, *Moral Injury*, NAT’L CTR. FOR PTSD, https://www.ptsd.va.gov/professional/treat/cooccurring/moral_injury.asp (identifying violent events as a source of moral injury).

¹⁴⁸ See Litz et al., *supra* note 139, at 701; Norman & Maguen, *supra* note 147.

¹⁴⁹ Litz et al., *supra* note 139, at 700; Geppert, *supra* note 139, at 238.

¹⁵⁰ See Litz et al., *supra* note 139, at 696; Douglas E. Lumpkin, Philip N. Stewart & Joel D. Kornegay, *Moral Injury: Wounds of an Ethical Warrior*, 3(1) ÆTHER: A JOURNAL OF STRATEGIC AIRPOWER AND SPACEPOWER 95, 100 (2024).

¹⁵¹ See Shay, *supra* note 140, at 58–59; Norman & Maguen, *supra* note 147.

¹⁵² Rehagen, *supra* note 123; *Bucklew Amicus*, *supra* note 112, at 4 (“A corrections employee’s principal duty is to care for the inmates under his or her charge to the best of his or her ability, and consistent

resignation after learning that his duties would include electric chair executions, a practice he thought was antithetical to his professional obligations.¹⁵³ Participants have questioned the morality of their work or described it as wrong, even as they rationalized their conduct by relying on its legality.¹⁵⁴ Ault asserted that his role was “more premeditated” than the people whose executions he supervised.¹⁵⁵ Although execution participants’ work is in response to societal demands, that does not preclude harm; Press observes that soldiers experienced moral injury “in the course of doing exactly what their commanders, and society, asked of them.”¹⁵⁶

Killing on behalf of the state can be demeaning and harmful to workers’ dignity. Execution participants, even those with supervisory roles, have described the experience as degrading.¹⁵⁷ After executing Edward Johnson, Cabana felt “dirty” and “scrubb[ed] as hard as [he] could” in the shower.¹⁵⁸ Baxley described praying for forgiveness after every execution.¹⁵⁹ Jerry Givens, who carried out executions in Virginia, described the consequences of his work: “The person that carries out the execution itself is stuck with it for the rest of his life. He has to wear that burden. Who would want that on them?”¹⁶⁰

Some execution participants may not be harmed by their work, and others may not acknowledge any harm.¹⁶¹ COs have expressed concern that psychological harm may develop over time.¹⁶² MacNair suggests that the absence of harm or reaction to executions is not unexpected because team members may interpret numbness as evidence that they do not have a problem.¹⁶³ Delayed reactions, as well as variable responses in traumatic situations are not uncommon.¹⁶⁴ The absence of injury may

with the law. Intentionally taking human life runs counter to that duty, as well as society’s basic norms—even if the person in question has committed a horrible crime.”); Tolly Moseley, *The Enforcers of the Death Penalty*, THE ATLANTIC (Oct. 1, 2014), <https://www.theatlantic.com/health/archive/2014/10/the-enforcers-of-the-death-penalty/379901/>.

¹⁵³ LIFTON & MITCHELL, *supra* note 22, at 101.

¹⁵⁴ *Id.* at 73 (“In members of all these groups, the discomfort, at times extending to excruciating guilt, has to do with a perception of the essential wrongness of killing a fellow human being, no matter what the cause.”); Rehagen, *supra* note 123 (“Your mind can’t grasp or justify what you are doing. You have feelings of guilt. My conscience really hurt.”); Rimer, *supra* note 31 (“You know, there’s a higher judgment than us. You second-guess yourself. I know how I feel, but is it the right way to feel? Is what we do right? But if we didn’t do it, who would do it?”).

¹⁵⁵ Pilkington, *Eight Executions*, *supra* note 112.

¹⁵⁶ PRESS, *supra* note 18, at 112.

¹⁵⁷ See LIFTON & MITCHELL, *supra* note 22, at 103; CABANA, *supra* note 56, at 81; Pilkington, *Eight Executions*, *supra* note 112.

¹⁵⁸ CABANA, *supra* note 56, at 66.

¹⁵⁹ Eisner, *Executed*, *supra* note 42.

¹⁶⁰ Daly, *supra* note 112.

¹⁶¹ Gill & Moritz-Rabson, *supra* note 43 (execution team member told colleague that he joined to “feign PTSD and retire early,” another said he was “doing justice”); Kroll, *supra* note 41, at 22 (CO “was never really bothered by his job, never had bad dreams, hasn’t thought much about it since”); TROMBLEY, *supra* note 22, at 214; Eisner, *Executed*, *supra* note 42; JOHNSON, *supra* note 16, at 180–81.

¹⁶² JOHNSON, *supra* note 16, at 180.

¹⁶³ MACNAIR, *supra* note 102, at 40.

¹⁶⁴ See *id.* at 40; *Witness to an Execution*, *supra* note 28 (Fred Allen describing delayed reaction)

not be dispositive—execution participants develop justifications for their role.¹⁶⁵ And executioners may, as MacNair observes, “have an interest in believing it does not affect them.”¹⁶⁶

There is little information about how states address these problems, either proactively or reactively.¹⁶⁷ The secrecy surrounding executions makes it difficult to ascertain the scope of these problems, and publicly available or redacted execution protocols do not contain this information. Information about whether or how prison officials screen prospective execution team members for psychological, mental, or emotional problems is mostly anecdotal, or intermittently addressed in litigation.¹⁶⁸ Former South Carolina executioners reported that they did not receive a psychological screening or much training.¹⁶⁹ A California corrections employee was selected to join the execution team even though he already had PTSD and clinical depression resulting from his employment in the prison.¹⁷⁰

Some states have psychological support available.¹⁷¹ In the late 1980s, California reportedly implemented stress-management sessions for individuals “likely to participate in executions” and “post-trauma procedures were put into effect to ease the psychological burden on the executioners.”¹⁷² Execution participants from other jurisdictions have reported that they did not receive psychological support or counseling after executions, although states may have standard Employee Assistance Programs available.¹⁷³ Members of execution teams may not seek available assistance.¹⁷⁴ They may also be dissatisfied with being forced into counseling or the timing of that counseling.¹⁷⁵

Execution participants appear to experience dignitary harms, moral deadening, and other psychological injuries. The institutions of capital punishment

¹⁶⁵ MACNAIR, *supra* note 102, at 40; *see supra* notes 77–81 and accompanying text.

¹⁶⁶ MACNAIR, *supra* note 102, at 31–32.

¹⁶⁷ CHRISTIANSON, *supra* note 102, at 216; LIFTON & MITCHELL, *supra* note 22, at 75 (depression and psychological impact on staff after executions).

¹⁶⁸ *Morales Brief*, *supra* note 43, at 23 (absence of screening in interview for relevant mental health history); Corinna Lain, *Who are the Death Row Executioners? Disgraced Doctors, Suspended Nurses, and Drunk Drivers*, THE GUARDIAN (Apr. 17, 2025), <https://www.theguardian.com/us-news/2025/apr/17/death-row-executioners>.

¹⁶⁹ Eisner, *Executed*, *supra* note 42.

¹⁷⁰ *Morales Brief*, *supra* note 43, at 81–82.

¹⁷¹ Rehagen, *supra* note 123.

¹⁷² CHRISTIANSON, *supra* note 102, at 216–17.

¹⁷³ BRUMFIELD, *supra* note 67, at 180 (“‘They didn’t give me no counseling, they didn’t give me anything,’ Nobody talked to us how we felt about it—no nothing.”); Eisner, *Carrying*, *supra* note 70 (“Most of the workers NPR interviewed reported suffering serious mental and physical repercussions. But only one person said they received any psychological support from the government to help them cope.”); Eisner, *Death Chamber*, *supra* note 32 (South Carolina execution participants did not receive counseling); Eisner, *Executed*, *supra* note 42.

¹⁷⁴ Eisner, *Carrying*, *supra* note 70 (“Because any assistance offered to them while they were working on executions was also overwhelmingly optional, many of them avoided asking for it so as not to seem weak.”)

¹⁷⁵ JOHNSON, *supra* note 16, at 182–83 (CO thought counseling was “forced on him” and wished he had been able to obtain it before participating in an execution to make a more informed choice).

are the source of these harms, regardless of individual attempts to diffuse responsibility or facilitate moral disengagement. The dirty work of executions, its associated stigma, and the psychological impact of killing place a significant burden on punishers.

C. Voluntariness

A common assumption is that execution participants are volunteers, or that the work is entirely voluntary. This assumption may lead some to dismiss concerns about participants' mental health. It would seem unnecessary to worry about those who carry out executions if they are the kind of people willing to do it. When Utah reauthorized the firing squad as a method of execution in 2015, one representative warned of the "attendant psychological trauma of participating in a cold-blooded execution" or "a possible failed attempt" and that corrections employees would have to participate and clean up blood after an execution.¹⁷⁶ The bill's sponsor dismissed these concerns, emphasizing that executioners were volunteers, but he did not address the fact that COs would still participate in the execution in some capacity.¹⁷⁷

Even voluntary participants, however, experience harm from their work.¹⁷⁸ After being selected as the warden for Florida State Prison, Ron McAndrew did not anticipate problems conducting executions because he supported the death penalty.¹⁷⁹ McAndrew developed serious stress, insomnia, and substance abuse problems while supervising executions.¹⁸⁰

The work of incarceration and execution is not as voluntary as one might think. Press argues that economic inequality is critical to understanding dirty work because it falls to people who have "fewer choices and opportunities."¹⁸¹ John Blume compares COs and slaughterhouse workers, observing that both "take the jobs because they have few other options," and "generally come from poor socio-economic backgrounds."¹⁸² People usually become COs because of a shortage of other economic opportunities.¹⁸³ Prisons in the United States are predominantly in rural areas and

¹⁷⁶ See *Hearing on H.B. 11: Death Penalty Procedure Amendments*, 61st Leg., 2015 Gen. Sess., at 30:04–30:37 (Utah Feb. 23, 2015) [hereinafter *Utah House Hearing*] (statement of Rep. Brian King), <https://le.utah.gov/av/floorArchive.jsp?markerID=90707>.

¹⁷⁷ *Id.* at 39:15–39:45 (statement of Rep. Paul Ray); see generally UTAH DEPT OF CORR., EXECUTION PROTOCOLS (2010) (on file with author) [hereinafter UTAH PROTOCOL].

¹⁷⁸ See Silverstein, *supra* note 23; Blume, *supra* note 75, at 1732; but see TROMBLEY, *supra* note 22, at 222–23 (prison counselor emphasizes voluntariness and ability to opt out as a reason why Missouri's execution team does not have emotional problems).

¹⁷⁹ Silverstein, *supra* note 23.

¹⁸⁰ *Id.*

¹⁸¹ PRESS, *supra* note 18, at 9–10; *id.* at 56–57 (discussing prison employment); OWENS & OWENS, *supra* note 23, at 106 (TDCJ employee describing why she took the job); PREJEAN, *supra* note 77, at 77 (CO tells Sister Prejean that he doesn't like "being part of this" but "it's part of the job" and he has to support his family).

¹⁸² Blume, *supra* note 75, at 1734.

¹⁸³ PRESS, *supra* note 18, at 56–59.

may be a primary source for stable employment with benefits in those areas.¹⁸⁴ Execution work may be an additional source of income, although the lack of transparency in executions makes it difficult to know precisely how much.¹⁸⁵

Social and career pressure may also make it harder to opt out. Being invited to join the execution team is usually a marker of competence and responsibility.¹⁸⁶ Execution participation may also be relevant to career advancement.¹⁸⁷ Craig Baxley and Terry Bracey, who served as executioners in South Carolina, brought federal lawsuits alleging retaliation and intentional infliction of emotional distress arising from execution work.¹⁸⁸ They claimed that after they asked to stop carrying out executions due to serious psychological consequences, they faced demotion.¹⁸⁹ They also alleged that they did not receive sufficient training to carry out executions or emotionally process their work.¹⁹⁰ The district court dismissed their claims, describing the situation as “difficult” with “emotional repercussions,” and observed that “[j]obs, particularly jobs in law enforcement, sometimes require tough choices.”¹⁹¹ Stopping execution participation may carry its own stigma. Fred Allen said that he felt “excluded within the supervisor ranks,” and while nobody said anything, he “sensed it.”¹⁹² Participation may also be seen as a lesser evil—some doctors, for example, have participated because they believe they are preventing greater harm during the execution.¹⁹³

Dismissing the harm experienced by people who dirty work because they choose to do it elides the complex motivations and gradual harm associated with

¹⁸⁴ See *id.* at 77–78; OWENS & OWENS, *supra* note 23, at 106; Tracy Huling, *Building a Prison Economy in Rural America*, in INVISIBLE PUNISHMENT: THE COLLATERAL CONSEQUENCES OF MASS INCARCERATION (Marc Mauer & Meda Chesney-Lind, eds., 2002); JACOB KANG-BROWN & RAM SUBRAMANIAN, OUT OF SIGHT: THE GROWTH OF JAILS IN RURAL AMERICA (Vera Inst. 2017), <https://www.vera.org/downloads/publications/out-of-sight-growth-of-jails-rural-america.pdf>; Sonya R. Porter, John L. Voorheis & William Sabol, *Correctional Facility and Inmate Locations: Urban and Rural Status Patterns*, CARRA Working Paper Series (2017), <https://www.census.gov/content/dam/Census/library/working-papers/2017/adrm/carra-wp-2017-08.pdf>.

¹⁸⁵ See Matt Clarke, *Oklahoma Raises Pay for Execution Doctors From \$300 to \$15,000 Per Execution, Still Won't Say Who They Are or What They Do*, PRISON LEGAL NEWS (Jan. 1, 2023), <https://www.prisonlegalnews.org/news/2023/jan/1/oklahoma-raises-pay-execution-doctors-300-15000-execution-still-wont-say-who-they-are-or-what-they-do/>; Gil et al., *supra* note 43 (noting that two COs alleged to be on Alabama’s execution team earned more than \$100,000 annually); Chris McDaniel, *Missouri Paid Executioners \$250,000 in Cash, Possibly Violating Tax Law*, BUZZFEED NEWS (Jan. 28, 2016), <https://www.buzzfeednews.com/article/chrismcDaniel/missouri-paid-executioners-in-cash#.hy3GIME94> (reporting that Missouri paid over \$250,000 in cash over three years to its execution team).

¹⁸⁶ See *supra* notes 46–48 and accompanying text.

¹⁸⁷ Eisner, *Executed*, *supra* note 42; THERE WILL BE NO STAY, *supra* note 112.

¹⁸⁸ See *Baxley v. Ward*, No. 3:07-cv-04067-CMC, 2010 WL 1010016, at *1 (D.S.C. Mar. 16, 2010); *Bracey v. Ward*, No. 3:07-4068-CMC, 2010 WL 1346032, at *1 (D.S.C. Mar. 31, 2010).

¹⁸⁹ *Baxley*, 2010 WL 1010016, at *12; *Bracey*, 2010 WL 1346032, at *9.

¹⁹⁰ *Baxley*, 2010 WL 1010016, at *12; *Bracey*, 2010 WL 1346032, at *9.

¹⁹¹ *Baxley*, 2010 WL 1010016, at *12; *Bracey*, 2010 WL 1346032, at *9.

¹⁹² OWENS & OWENS, *supra* note 23, at 178.

¹⁹³ See Gawande, *supra* note 32, at 1224–25.

execution work. Press observes that “dirty workers” may be perceived as causing “immense suffering and harm,” but he asserts that this perception “obscure[s] the power dynamics and the lawyers of complicity that perpetuate their conduct.”¹⁹⁴ Mihailis Diamantis, in exploring the negative mental health effects of policing, observes that police work may be “dangerous and dehumanizing” for policed communities and for the police themselves.¹⁹⁵ Addressing those problems, he argues, provides opportunities to reform some problems of policing.¹⁹⁶ Addressing the effect of punishment on punishers provides new insights on punishment and cruelty, offering opportunities to address the problem of capital punishment.

III. PUNISHMENT, CRUELTY, AND PUNISHERS

The work of punishment can damage punishers. This Part addresses how and why the law can conceptualize the impacts of punishing on punishers within legal and constitutional understandings of punishment and cruelty.

A. *Conceptualizing Punishers’ Harms*

Punishment is generally imposed on an offender—which executioners are not.¹⁹⁷ Carrying out an execution is not punishment. But human involvement is relevant to understanding punishment because humans administer it.¹⁹⁸ Punishment systems are designed and operated by human beings. A punisher’s experiences are not “punishment,” but are relevant to punishment systems. Inflicting punishment may harm the punisher in unintended but foreseeable ways, as state practices surrounding executions reveal.¹⁹⁹

Although intent may be relevant to punishment,²⁰⁰ it does not capture all the harms associated with punishment.²⁰¹ Adam Kolber argues that a coherent understanding of punishment should encompass both intended and foreseeable harms.²⁰² Similarly, John Stinneford explains that “the best way to sort between punishment-related harms that can fairly be called part of the punishment and those that cannot is to focus on the likelihood that the punishment will cause severe,

¹⁹⁴ PRESS, *supra* note 18, at 9.

¹⁹⁵ Mihailis E. Diamantis, *Police Mental Health*, 109 IOWA L. REV. 2063, 2088 (2024).

¹⁹⁶ *Id.* at 2089–90.

¹⁹⁷ See H.L.A. HART, PUNISHMENT AND RESPONSIBILITY: ESSAYS IN THE PHILOSOPHY OF LAW 4–5 (1st ed. 1968) (defining punishment); Dan Markel, Chad Flanders & David C. Gray, Essay, *Beyond Experience: Getting Retributive Justice Right*, 99 CALIF. L. REV. 605, 619 (2011).

¹⁹⁸ See HART, *supra* note 197, at 4–5; Markel et al., *supra* note 197, at 619.

¹⁹⁹ See *supra* Section II.B; cf. Diamantis, *supra* note 195, at 2088 (discussing the harms associated with professions that “expose workers to extreme third-person suffering”).

²⁰⁰ Benjamin Levin, *The Limits of Punishment*, CALIF. L. REV. (forthcoming 2026) (manuscript at 8–11); Adam J. Kolber, *Unintentional Punishment*, 18 LEGAL THEORY 1, 5 (2012); Dolovich, *Cruelty*, *supra* note 62, at 895–96; HART, *supra* note 197, at 4–5.

²⁰¹ See Danielle C. Jefferis, *Our Progressively Brutal Constitution: A Legal Expressivist Account of the Excessive Force Doctrine*, 75 EMORY L.J. 1, 12–13 (2025).

²⁰² Kolber, *supra* note 200, at 3.

unjustified harm rather than the punisher’s intent to inflict such harm.”²⁰³ Sharon Dolovich suggests that officials “administer[] a state punishment” when they create the conditions of incarceration, “whatever their mental state regarding the conditions they create.”²⁰⁴

Punishment creates unintended but foreseeable harms, such as those associated with conditions of confinement or the impacts on an incarcerated person’s loved ones.²⁰⁵ Megan Comfort observes that while other social institutions consider secondary impacts, the criminal legal system “stands out for its general disregard of the likelihood of such reverberations occurring and its near total lack of infrastructure for responding to them when they do arise.”²⁰⁶ These impacts on family members, communities, and associates of incarcerated people, she asserts, are more troubling because they are “inherently more coercive to bystanders” than other institutional systems.²⁰⁷ These effects flow from punishment and are relevant to understanding it, even if these effects do not fit neatly within definitions of punishment.

Evaluating punishment from an institutional or structural perspective illustrates why unintended and foreseeable harms are relevant. As Dolovich explains, the “Eighth Amendment is concerned exclusively with state punishment, which is produced not by one individual acting alone but by the state acting on behalf of the collective.”²⁰⁸ Thus, a state’s decision to adopt a particular method of punishment means that the conditions and effects of that method are part of the punishment.²⁰⁹ The unintended harm is an effect of the punishment.

Punishers are not exempt from harmful effects associated with punishment. Some of the harms arise from the nature of their work and the structure of systems of incarceration and punishment.²¹⁰ Dolovich, for example, contends that the moral disengagement and dehumanization of incarcerated people resulting from the structure of American prisons “primes” COs to engage in violence, or at least encourages indifference, inconsistent with officers’ obligations to care for their charges.²¹¹ This may create ethical and personal conflicts for COs, potentially producing secondary trauma or moral injury.²¹² This risk is even more serious in executions.

²⁰³ John F. Stinneford, *The Original Meaning of Cruel*, 105 GEO. L.J. 441, 448 (2017).

²⁰⁴ Dolovich, *Cruelty*, *supra* note 62, at 899.

²⁰⁵ See Kolber, *supra* note 200, at 13; Megan Comfort, *Punishment Beyond the Legal Offender*, 3 ANN. REV. L. & SOC. SCI. 271 (2007); G. Alex Sinha & Janani Umamaheswar, *Hidden Takings and the Communal Burden of Punishment*, 60 HARV. C.R.-C.L. L. REV. (forthcoming 2025) (manuscript at 6); Mariam A. Hinds, *The Shadow Defendants*, 113 GEO. L.J. 823 (2025).

²⁰⁶ Comfort, *supra* note 205, at 273.

²⁰⁷ *Id.*

²⁰⁸ Dolovich, *Cruelty*, *supra* note 62, at 892.

²⁰⁹ *Id.* at 892–93.

²¹⁰ Dolovich, *Excessive*, *supra* note 105, at 463 (describing the impact of prison work on the psychology of corrections officers).

²¹¹ *Id.* at 419; see *supra* note 152 and accompanying text.

²¹² See PRESS, *supra* note 18, at 51–53.

Punishment systems shift the dirty work of incarceration and execution, along with their human cost, out of public view.²¹³ State execution processes are designed to facilitate moral disengagement and detachment.²¹⁴ Executions are rituals of dehumanization that lead to death, a process that, as Johnson has documented, affects both the person being executed and execution participants.²¹⁵ The harm both to prisoners and COs is foreseeable—execution protocols and practices appear to be designed and carried out with awareness of the potential emotional and psychological harms for people who conduct executions.²¹⁶ Task fractionalization and responsibility shifting are consistent in executions throughout U.S. history. Execution participants kill on behalf of the state, a stigmatized role that may lead to serious harms. When systems rely on and facilitate dirty work, thereby creating and tolerating the harm associated with that work, the consequences on the punished and punishers are effects of the state’s choice about how to punish.

This institutional and structural problem illuminates the broader indifference to the well-being of execution participants. Executioners’ individual experiences or emotional needs do not often carry legal significance—they are simply, according to one judge, lacking the appropriate leadership that will permit them to subsume human feelings within systematic state execution procedures.²¹⁷ The impact of executions on executioners is not punishment in the sense that executioners are being punished. But the state punishes in ways that cause unintended but known and foreseeable harm to execution participants. This deserves analysis within systems of punishment and criminal law governance.

The infliction of punishments may produce cruel effects both on the person experiencing that punishment and the person inflicting the punishment that deserve constitutional scrutiny.

B. Cruelty, Dignity, and Inflicting Punishment

Inflicting punishment through execution participation may result in harm. This Section argues that the harmful effects of punishing on punishers contribute to the cruelty of a particular punishment through dignitary harms. That cruelty should be part of a constitutional analysis.

Courts have generally followed a narrow interpretation of the Eighth Amendment’s constraints on executions, focusing primarily on physical pain as cruelty.²¹⁸ The Supreme Court has recently focused on the “origins and meaning” of the Cruel and Unusual Punishments Clause, concluding that the Clause was aimed

²¹³ See *supra* notes 66–70 and accompanying text.

²¹⁴ See *supra* notes 71–81 & 90–108 and accompanying text.

²¹⁵ See JOHNSON, *supra* note 16, at 207–13.

²¹⁶ See *supra* notes 71–81 and accompanying text.

²¹⁷ In re: The Setting of Execution Dates, at 3–4 (Ok. Ct. Crim. App. May 7, 2024) (Lumpkin, J., concurring in part and dissenting in part) (on file with author).

²¹⁸ See *Boyd v. Hamm*, No. 2:25-cv-529-ECM, 2025 WL 2884410, at *20–21 (M.D. Ala. Oct. 9, 2025); Alexandra L. Klein, *The Eighth Amendment’s Paper Tiger: Pain, Executions and the Cruel and Unusual Punishments Clause*, 17 NE. U. L. REV. 1, 11–34 (2025).

at preventing the adoption of specific practices that were generally out of use at the time the Amendment was adopted.²¹⁹ Cruelty, however, may carry a larger range of meanings. William Berry, for example, has proposed a taxonomy for textual interpretations of cruelty in state constitutions that could include: “(1) torture, (2) excessive punishment, (3) impugning dignity, (4) vindictive retribution, (5) absolutely disproportionate, (6) relatively disproportionate, (7) non-individuating, (8) inhumane and barbaric.”²²⁰

Although cruelty may be described by reference to intent,²²¹ even unintended harm can be unconstitutionally cruel.²²² Stinneford, for example, asserts that the original meaning of cruel refers to the “punishment’s cruel effect.”²²³ If these “effects are unjustly harsh in light of longstanding prior punishment practice,” then, he concludes, a punishment violates the Eighth Amendment.²²⁴ He also argues that this encompasses proportionality, barring some punishments entirely or those that are “too harsh in relation to [their] justification” or excessively harsh “in light of longstanding prior punishment practices.”²²⁵ Similarly, Meghan Ryan notes that historical definitions of cruel “refer to punishment that is exceptionally brutal” and “inflicting pain for a purpose other than punishment.”²²⁶ She argues that evaluating cruelty necessitates an examination of the purpose, nature, and quality of a punishment, although motive is not dispositive.²²⁷ Mark Drumbl and Barbora Holá argue that transitional justice efforts, such as lustration, even when undertaken with good intentions, may lead to cruelty.²²⁸ Cruelty, they write, should “include[] intentional and unintentional acts, acts that satisfy the inflictor, planned acts, as well as careless or thoughtless or reckless or ignorant acts, deliberate imposition of pain

²¹⁹ *City of Grants Pass, Or. v. Johnson*, 603 U.S. 520, 542 (2024) (explaining that the Eighth Amendment was adopted to prevent the use of “certain barbaric punishments like ‘disemboweling, quartering, public dissection, and burning alive,’ even though those practices had by then ‘fallen into disuse’” (quoting *Bucklew v. Precythe*, 587 U.S. 119, 130 (2019))).

²²⁰ William W. Berry III, *Unlocking State Punishment Clauses*, RUTGERS U. L. REV. (forthcoming 2025) (manuscript at 30).

²²¹ *Glossip v. Gross*, 576 U.S. 863, 899 (2015) (Thomas, J., concurring). *See also* MARK A. DRUMBL & BARBORA HOLÁ, *INFORMERS UP CLOSE: STORIES FROM COMMUNIST PRAGUE* 211 (2024); JUDITH SHKLAR, *ORDINARY VICES* 8 (1984) (defining cruelty as “the willful inflicting of physical pain on a weaker being in order to cause anguish and fear”).

²²² *See Bucklew v. Precythe*, 587 U.S. 119, 135 (2019) (declining to address whether the Eighth Amendment only prohibits the intentional infliction of pain in executions). Justice Thomas, however, has argued that the original meaning of “cruel” within the Eighth Amendment requires a showing of intent to cause pain. *See Bucklew v. Precythe*, 587 U.S. 119, 135 (2019); *see also Baze v. Rees*, 553 U.S. 35, 94 (2008) (Thomas, J., concurring in the judgment).

²²³ Stinneford, *supra* note 203, at 464.

²²⁴ *Id.* at 464.

²²⁵ *Id.* at 473.

²²⁶ Meghan J. Ryan, *Judging Cruelty*, 44 U.C. DAVIS L. REV. 81, 123–24 (2010).

²²⁷ *Id.* at 85.

²²⁸ DRUMBL & HOLÁ, *supra* note 221, at 211.

as well as collateral damage.”²²⁹ The best motivations may still produce cruel effects.²³⁰

Dolovich’s theory of institutional cruelty also rejects intentionality: an institution is not sadistic or indifferent, but may be cruel “when, by virtue of its design and operation, it systematically subjects some subset of the population to needless and avoidable suffering.”²³¹ Cruelty is attributable to individual COs, but also “through a series of official acts collectively attributable to the state—acts which together created the institutional structure in which prisoners serve their sentences—prisoners were placed in the custody of individual officers who would create those conditions or allow them to exist.”²³² The moral disengagement necessarily associated with the work of incarceration facilitates institutional cruelty by contributing to dehumanization, violence, and neglect within prisons.²³³

Legal systems and structures produce cruel effects, regardless of the intent of individual actors or architects.²³⁴ The effect of cruelty is just as, if not more, significant than intent when evaluating the consequences of state decisions about punishment upon the punished and punishers. The unintended but foreseeable effects of state cruelty often have dignitary consequences.

The Eighth Amendment’s prohibition on cruel and unusual punishment rests on a foundation of dignity.²³⁵ Dignity underpins and sustains constitutional rights.²³⁶ Despite, or perhaps because of its importance, there is no clear agreement as to the meaning of dignity.²³⁷ At its core, however, dignity addresses human worth and value: individuals have intrinsic value that should be respected and humans should not be treated as a means to an end.²³⁸ Scholars suggest that both individual and collective

²²⁹ *Id.*

²³⁰ *Id.*

²³¹ Dolovich, *Cruelty*, *supra* note 62, at 925–26.

²³² *Id.* at 930

²³³ *Id.* at 933–34; PRESS, *supra* note 18, at 52–53.

²³⁴ DRUMBL & HOLÁ, *supra* note 221, at 213.

²³⁵ *Trop v. Dulles*, 356 U.S. 86, 100 (1958) (plurality) (“The basic concept underlying the Eighth Amendment is nothing less than the dignity of man.”); *Kennedy v. Louisiana*, 554 U.S. 407, 420 (2008); *Furman v. Georgia*, 408 U.S. 238, 270 (1972) (Brennan, J., concurring); *Estelle v. Gamble*, 429 U.S. 97, 102 (1976); Meghan J. Ryan, *Taking Dignity Seriously: Excavating the Backdrop of the Eighth Amendment*, 2016 U. ILL. L. REV. 2129, 2141–42 (describing the Court’s emphasis on dignity in Eighth Amendment jurisprudence); De Lilly, *supra* note 22, at 114–19; Michal Buchhandler-Raphael, *Drugs, Dignity, and Danger: Human Dignity as a Constitutional Constraint to Limit Overcriminalization*, 80 TENN. L. REV. 291, 317–20 (2012) (discussing Supreme Court jurisprudence addressing dignity and punishment).

²³⁶ See Buchhandler-Raphael, *supra* note 235, at 307; Leslie Meltzer Henry, *The Jurisprudence of Dignity*, 160 U. PA. L. REV. 169, 190 (2011); Maxine Goodman, *Human Dignity in Supreme Court Constitutional Jurisprudence*, 84 NEB. L. REV. 740, 743 (2006).

²³⁷ See Ryan, *Dignity*, *supra* note 235, at 2139; Buchhandler-Raphael, *supra* note 235, at 313; Henry, *supra* note 236, at 172.

²³⁸ Ryan, *Dignity*, *supra* note 235, at 2139–40; Goodman, *supra* note 236, at 751–52; Onora O’Neill, *A Simplified Account of Kant’s Ethics*, in APPLIED ETHICS: A MULTICULTURAL APPROACH 16, 17 (Larry May & Jill B. Delston, eds.) (6th ed. 2016) (discussing Immanuel Kant’s “Formula of the End in Itself”); IMMANUEL KANT, *GROUNDWORK OF THE METAPHYSICS OF MORALS* 36 (James W. Ellington, trans., Hackett Pub. 3d ed. 1993) (1785).

dignity interests animate the Eighth Amendment, although they disagree which is more significant. Ryan, for example, suggests that individual dignity, focused through proportionality and humanness, is more significant in Eighth Amendment analysis.²³⁹ By contrast, Leslie Meltzer Henry reasons that collective dignity interests are more relevant; recognition that inhumane treatment of some diminishes the “collective virtue” of everyone.²⁴⁰ Judicial decisions rejecting certain punishments have drawn on both individual and collective dignity.²⁴¹

Although these decisions have primarily focused on the effects of punishment on the person being punished, punishers’ dignity and their experience of cruelty are relevant to a punishment’s excessiveness and cruelty.²⁴² In *Jackson v. Bishop*, the Eighth Circuit, in an opinion by then-Judge Harry Blackmun, concluded that corporal punishment in Arkansas penitentiaries violated the Eighth Amendment based on its effects on everyone involved.²⁴³

Corporal punishment generates hate toward the keepers who punish and toward the system which permits it. *It is degrading to the punisher and to the punished alike.* It frustrates correctional and rehabilitative goals. This record cries out with testimony to this effect from the expert penologists, from the inmates and from their keepers.²⁴⁴

Jackson recognized both individual and collective dignitary interests: corporal punishment was excessive because the harm to all persons involved undermined justifications for punishment.²⁴⁵ These harms had cruel effects. The Eighth Circuit rejected institutional safeguards because some punishments cannot be inflicted because of their nature, their effects, and the risk of abuse.²⁴⁶ Regardless of COs’

²³⁹ Ryan, *Dignity*, *supra* note 235, at 2154–55.

²⁴⁰ Henry, *supra* note 236, at 221.

²⁴¹ *People v. Anderson*, 493 P.2d 880, 895 (Cal. 1972), *superseded by constitutional amendment*, *People v. Frierson*, 599 P.2d 587 (Cal. 1979) (“The dignity of man, the individual and the society as a whole, is today demeaned by our continued practice of capital punishment.”); *See State v. Mata*, 745 N.W.2d 229, 278 (Neb. 2008); *Dawson v. State*, 554 S.E.2d 137, 144 (Ga. 2001); Ryan, *Dignity*, *supra* note 235, at 2144; *Trop*, 356 U.S. at 100; *Hope v. Pelzer*, 536 U.S. 730, 738 (2002); *Roper v. Simmons*, 543 U.S. 551, 578 (2005); *Kennedy v. Louisiana*, 554 U.S. 407, 420 (2008); *Furman v. Georgia*, 408 U.S. 238, 270 (1972) (Brennan, J., concurring); *Brown v. Plata*, 563 U.S. 493, 511 (2011); *see also Weems v. United States*, 217 U.S. 349, 366–67 (1910).

²⁴² *See De Lilly*, *supra* note 22, at 118–19 (asserting that focusing solely on defendants “ignores other individuals in the capital punishment system whose dignity may be jeopardized by their duties”).

²⁴³ *Jackson v. Bishop*, 404 F.2d 571, 572 (8th Cir. 1968). The district court had already granted injunctive relief prohibiting the use of other forms of corporal punishment but would have allowed prisons to use the strap after appropriate regulations and safeguard were established. *Id.*

²⁴⁴ *Id.* at 580 (emphasis added).

²⁴⁵ *See id.* at 579–80 (identifying justifications for banning corporal punishment); *State v. Nipper*, 81 S.E. 164, 165 (N.C. 1914) (“That which degrades and imbrutes a man cannot be either necessary or reasonable.”).

²⁴⁶ *Jackson*, 404 F.2d at 580; *Nipper*, 81 S.E. at 167–68. *Cf. Alice Ristroph, Just Violence*, 56 ARIZ. L. REV. 1018, 1059 (2014) (asserting that limitations on punishment should be justifiable by humanitarian principles, rather than justifications for punishment).

personal feelings (or lack thereof), the practice was degrading and harmful to both their dignity and the prisoners' dignity.

Some forms of punishment are unacceptable because they degrade the punished and harm their dignity and they degrade punishers, harming individual and collective dignity. International law discourse on torture has recognized that torturers may experience their own dignitary harms through dehumanization and violence.²⁴⁷ As Alice Ristroph explains, “international humanitarian law” prohibitions “reflect judgments not only about the human dignity of the targets of violence, but also the human dignity of the *agents* of violence.”²⁴⁸ Extreme applications of *lex talionis*, such as raping a rapist, also fall within this category. The degradation and harm inflicted on the person being punished are sufficient in themselves to prohibit it, but carrying out such a punishment would also be degrading to the punisher and to us all.²⁴⁹ Similarly, in seventeenth-century America, condemned prisoners could occasionally escape their death sentence in exchange for conducting executions.²⁵⁰ The temporary hangman substituted punishment for the stigmatized and undesirable act of killing that was ordinarily the sheriff's job.²⁵¹ It is cruel for the state to put someone in a position where they are forced to kill to save their own life. The moral disengagement and self-dehumanization associated with such dirty work would be intolerably degrading and unconstitutionally cruel.

Institutional capital punishment practices facilitate the dehumanization of both the person being executed and execution workers, rendering them cogs within a machine.²⁵² The harms punishers experience—the stigma of dirty work, moral injury, and other psychological and emotional injuries—are all cruel effects of imposing punishment. The nature of this dirty work produces unintended dignitary harms of deadening, psychological trauma, feelings of degradation and shame, and moral injury.²⁵³ The harm to moral capacity exacerbates the cruelty associated with executions, and cultivating indifference to human suffering increases the risk of harm to all involved—the punished and the punishers.²⁵⁴ Johnson argues that as a result of dehumanization, the death penalty “violates a basic tenet of just punishment: that

²⁴⁷ See *Tackling Torture: Who are the Torturers?*, INT'L COMM. OF THE RED CROSS (Feb. 15, 2016), <https://www.icrc.org/en/document/lutter-contre-la-torture-qui-sont-les-tortionnaires>.

²⁴⁸ Ristroph, *supra* note 246, at 1059.

²⁴⁹ *Id.*; Robert Blecker, *Killing Them Softly: Meditations on the Painful Punishment of Death*, 35 FORDHAM URB. L.J. 969, 995 (2008) (“Michael Morales may deserve more than he can physically tolerate. It would violate the Constitution, and our own human dignity, to kill him as painfully as he deserves to die.”); Ryan, *Dignity*, *supra* note 235, at 2146 (explaining that individual dignity underpins the Court's understanding that some punishments cannot be inflicted because offenders are human beings).

²⁵⁰ BANNER, *supra* note 15, at 37.

²⁵¹ *Id.* at 36–37.

²⁵² JOHNSON, *supra* note 16, at 213 (“[T]he death penalty is simply a form of bureaucratically administered violence, a bureaucratization of death in which death row is an integral component.”).

²⁵³ See *supra* Section II.B.

²⁵⁴ See, e.g., TROMBLEY, *supra* note 22, at 165 (“Some people—officers and inmates alike—thrive in prison because of the opportunities for cruelty it presents; others are made cruel by the environment they find themselves in.”).

punishment be administered by and on persons in the name of the persons who make up the larger moral community.”²⁵⁵ The Eighth Amendment’s focus on dignity means that dehumanization of the punished and punisher, and the concomitant harms, are inconsistent with the values it protects. As Lauren De Lilly explains, “A broader construction that encompasses protecting the dignity of both the individual defendant and the participants in executions more fully realizes the purpose of the Eighth Amendment to preserve human dignity.”²⁵⁶

A more complete understanding of cruelty requires considering who inflicts punishment and their role within punishment institutions and practices. Evaluating whether a punishment has cruel effects on punishers does not undermine the importance of preventing the punished from experiencing cruelty. Rather, approaching punishment as a problem of human dignity and suffering, in which human needs and interests are prioritized, benefits everyone, including the punished, and offers a more complete understanding of cruelty.²⁵⁷ It is, as Ristroph observes “far more effective to ground categorical prohibitions of violence on humanitarian arguments about what the violence does to all of us—targets, agents, observers, and even the alleged beneficiaries of it.”²⁵⁸

IV. THE CRUEL EFFECTS OF PUNISHMENT

This Part addresses how the cruel effects of punishment on punishers may apply in constitutional challenges to methods of execution and capital punishment. Section A addresses why people facing executions are best positioned to bring these claims. Section B addresses the utility of these arguments in incrementalist and abolitionist challenges. One option is to deploy the current Eighth Amendment analysis to challenge state execution practices by identifying risks, errors, or protocol features that increase the likelihood of a botched execution and are therefore more likely to trigger secondary trauma in execution participants. The second approach is a broader challenge to the constitutionality of capital punishment via the Eighth Amendment or equivalent state constitutional provision. This Part proposes the adoption of a bright-line principle to evaluate punishments: constitutional prohibitions on cruelty forbid punishments that degrade the dignity of the punished and punishers. Finally, addressing the effect of executions on execution participants may provide useful strategy in legislative abolition efforts. Section C concludes by discussing why execution participants’ harms deserve scrutiny and how the arguments described in this Article may reach beyond capital punishment.

A. *Standing to Litigate Punishers’ Harms*

²⁵⁵ JOHNSON, *supra* note 16, at 218.

²⁵⁶ De Lilly, *supra* note 22, at 119.

²⁵⁷ See *Tackling Torture*, *supra* note 247. Cf. Diamantis, *supra* note 195, at 2067 (asserting that addressing the mental health of police officers may reduce overall violence by police).

²⁵⁸ Ristroph, *supra* note 246, at 1059.

This Section explains why a person challenging a state’s capital punishment practices can raise arguments about the harm that execution participants experience. A person who is facing execution or the death penalty confronts an injury that gives them “a ‘sufficiently concrete interest’ in the outcome.”²⁵⁹ Their claims are not specifically to vindicate the execution team’s interests—rather, the dignitary and other harms execution participants experience are relevant to the individual’s right to be free from cruel and unusual punishment.

To have standing to bring a constitutional claim, a litigant must have “an ‘injury in fact’—an invasion of a legally protected interest which is (a) concrete and particularized . . . and (b) ‘actual or imminent, not ‘conjectural or hypothetical.’”²⁶⁰ There must be a “causal connection” between the injury and the conduct that is fairly traceable to the defendant.²⁶¹ Finally, it must be likely that the injury or harm will be “redressed by a favorable decision.”²⁶² Although litigants can generally assert only their own rights, litigants can vindicate third-party interests in certain circumstances provided three conditions are met: (1) the litigant must have an “injury in fact,” (2) there must be a “close relation to the third party,” and (3) there must be “some hindrance to the third party’s ability to protect his or her own interests.”²⁶³

A person challenging a state’s method of execution has standing because if the state were to execute them in a way that would violate constitutional protections against cruel and unusual punishment, the state will violate their rights. A judicial decision prohibiting the state from taking the challenged action or requiring it to do something else will reduce or alleviate the risk of suffering. Litigants can raise claims about risks of pain and suffering, although they must show that it is “sure or very likely” to occur.²⁶⁴ Executions also implicate third-party interests because carrying out this state function may have serious effects on execution participants.²⁶⁵

Powers v. Ohio, which held that defendants could object to race-based peremptory strikes even if the defendant and the juror were of different races, offers a roadmap for structuring these claims.²⁶⁶ The Court assessed the function and purpose of the legal system to illuminate the significance of the harm.²⁶⁷

The defendant was harmed because of the effect on the legal system as a whole: excluding a juror because of race undermines the integrity of the jury system and “places the fairness of a criminal proceeding in doubt.”²⁶⁸ Tolerating a constitutional

²⁵⁹ *Id.* at 411 (quoting *Singleton v. Wulff*, 428 U.S. 106, 112 (1976)).

²⁶⁰ *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560 (1992).

²⁶¹ *Id.*

²⁶² *Simon v. Eastern Ky. Welfare Rights Org.*, 426 U.S. 26, 38 (1976).

²⁶³ *Powers v. Ohio*, 499 U.S. 400, 410–11 (1991); RICHARD H. FALLON, JR., JOHN F. MANNING, DANIEL J. MELTZER & DAVID L. SHAPIRO, *HART AND WESCHLER, THE FEDERAL COURTS AND THE FEDERAL SYSTEM* 165 (7th ed., 2015).

²⁶⁴ *Glossip v. Gross*, 576 U.S. 863, 881 (2015).

²⁶⁵ See *McGehee v. Hutchinson*, 854 F.3d 488, 503–04 (8th Cir. 2017) (Kelly, J., dissenting) (discussing the stress prison staff experience related to executions).

²⁶⁶ *Powers v. Ohio*, 499 U.S. 400, 402 (1991).

²⁶⁷ See *id.* at 411–12 (considering the purpose of the jury system in evaluating the nature of the harms to an individual defendant and jurors).

²⁶⁸ *Id.* at 411; *Batson v. Kentucky*, 476 U.S. 79, 87 (1986).

violation by parties who are supposed to uphold the constitution threatens the legitimacy and fairness of the criminal legal system.²⁶⁹ An unconstitutionally selected jury cannot produce a verdict consistent with the purposes of the jury system.²⁷⁰

Prospective jurors struck on the basis of race experienced dignitary harms: “profound personal humiliation” and, like the defendant, a loss of “confidence in the court and its verdict.”²⁷¹ These harms implicated the legitimacy and stability of the criminal legal system and made it “necessary and appropriate for the defendant to raise the rights of the juror.”²⁷² A defendant would be a “motivated, effective advocate” because the remedy for a *Batson* violation is to reverse their conviction.²⁷³ Excluded jurors could sue, but were unlikely to do so because of the difficulties of proving a violation will recur and initiating litigation.²⁷⁴

Applying *Powers* illustrates why a person facing execution is best suited to bring these claims. The Court conducted its analysis with the purpose of the legal system in mind. Here, claims about execution participants’ harm also implicates the functionality of the criminal legal system. Executions must comply with the Eighth Amendment’s prohibition against cruel and unusual punishments.²⁷⁵ Capital punishment, and punishment generally, must serve some social utility, or it is purposeless cruelty.²⁷⁶ Although a litigant’s claims about execution suffering are personal, they address the critical question of how a punishment is imposed. That protects both the individual right not to be subjected to unconstitutional punishment and the broader interest in a fair and lawful system of punishment that is consistent with dignity and self-respect. The administration of justice is damaged by the dehumanization, detachment, and degradation inherent to executions.²⁷⁷ Excessive cruelty in executions destabilizes institutions of punishment in the same way that cruel conditions of confinement or racial implications of capital punishment and mass incarceration undermine the legitimacy of capital punishment and the criminal legal system.²⁷⁸ Indifference to the harms associated with punishment by actors and institutions that are supposed to respect constitutional rights damages perceptions

²⁶⁹ See *Powers*, 499 U.S. at 411–12.

²⁷⁰ *Id.* at 413.

²⁷¹ *Id.* at 402 (“[W]e have not questioned the premise that racial discrimination in the qualification or selection of jurors offends the dignity of persons and the integrity of the courts.”); *id.* at 413–14.

²⁷² *Id.* at 414.

²⁷³ *Id.*

²⁷⁴ *Id.* at 414–15.

²⁷⁵ *Bucklew v. Precythe*, 587 U.S. 119, 130 (2019) (“While the Eighth Amendment doesn’t forbid capital punishment, it does speak to how States may carry out that punishment, prohibiting methods that are ‘cruel and unusual.’”).

²⁷⁶ *Gregg v. Georgia*, 428 U.S. 153, 173 (1976).

²⁷⁷ See *supra* note 255 and accompanying text.

²⁷⁸ See *McCleskey v. Kemp*, 481 U.S. 279, 344 (1987) (Brennan, J., dissenting) (“It is tempting to pretend that minorities on death row share a fate in no way connected to our own, that our treatment of them sounds no echoes beyond the chambers in which they die. Such an illusion is ultimately corrosive, for the reverberations of injustice are not so easily confined.”); Robert L. Tsai, *After McCleskey*, 96 S. CAL. L. REV. 1031, 1041–42 (2023); Brandon Hasbrouck, *Prisons as Laboratories of Antidemocracy*, 133 YALE L.J. 1966, 1981–86 (2024).

of fairness that are critical to the general acceptance of the criminal legal system.²⁷⁹ The interests of the person facing execution are more urgent and substantial, but executions are harmful to the human dignity of all involved persons.

The condemned experiences a first-party harm and the inclusion of the injuries the execution team experiences strengthens the claims they raise. The litigants are not raising purely collateral or representative claims, but direct claims that include collateral harms.²⁸⁰

The relationship between the person facing execution and the execution team is sufficiently close. It is in one sense antagonistic because the execution team is supposed to kill that person. But there may be less antagonism than one might expect. Both parties are dehumanized and harmed by executions.²⁸¹ These harms occur both during preparations for an execution and the execution itself.²⁸² Execution participants generally want to avoid botched executions and carry out a dignified procedure.²⁸³ The condemned has an interest in not being subjected to cruel punishment and the execution team has an interest in their own emotional and psychological well-being. The relationship is sufficiently close, therefore, that the person facing execution can be “fully, or very nearly, as effective a proponent of the right as the latter.”²⁸⁴

Execution team members are unlikely to be able to bring claims to address the harm they have experienced or are likely to experience.²⁸⁵ The harm associated with execution participation appears to build over time and incremental harms are harder to immediately identify. Further, as litigation by former executioners illustrates, their injuries may not be cognizable under state law tort claims.²⁸⁶

The most significant obstacle to litigation by execution team members, however, is the culture of secrecy surrounding the imposition of the death penalty and associated stigma. Some execution workers who spoke about their experiences to NPR in 2022 had not shared their experiences or identities publicly or even with family members.²⁸⁷ Although there are some former prison wardens and executioners

²⁷⁹ See *Powers*, 499 U.S. at 412–13.

²⁸⁰ See Curtis A. Bradley & Ernest A. Young, *Unpacking Third-Party Standing*, 131 YALE L.J. 1, 6 (2021) (describing distinct classes of litigants in third-party standing).

²⁸¹ See *supra* notes 94–96 and accompanying text.

²⁸² See *supra* Section II.B; cf. *Powers*, 499 U.S. at 412 (emphasizing the temporal relationship of the constitutional violation to the trial process and third-party impacts).

²⁸³ See JOHNSON, *supra* note 16, at 128–29 (discussing professionalism in executions); UTAH PROTOCOL, *supra* note 177, at 4–5 (describing execution staff’s obligations). But see Emergency Application for Stay of Execution to Preserve Jurisdiction, at 15–16 *Stanko v. Anderson*, 142 S. Ct. 2790 (June 13, 2025) (No. 24A1231) (alleging that evidence suggests that the firing squad that shot Mikal Mahdi intended to miss his heart and “cause Mahdi’s extreme suffering”).

²⁸⁴ *Singleton v. Wulff*, 428 U.S. 106, 115 (1976).

²⁸⁵ See *Powers*, 499 U.S. at 414–15.

²⁸⁶ *Baxley v. Ward*, No. 3:07-cv-04067-CMC, 2010 WL 1010016, at *11–12 (D.S.C. Mar. 16, 2010); *Bracey v. Ward*, No. 3:07-4068-CMC, 2010 WL 1346032, at *8–9 (D.S.C. Mar. 31, 2010). For a discussion of potential employment law remedies for executioners, see Kimberly Hope Vega Cioffi, Note, *Remedies for Executioners: The Machinery of Death’s Overlooked Victims*, 8 HOW. HUM. & C.R. L. REV. 133 (2024).

²⁸⁷ Eisner, *Carrying*, *supra* note 70.

who have spoken publicly about their work and sometimes advocate to abolish capital punishment,²⁸⁸ silence appears to be the norm. Virtually every state that conducts executions has adopted a law prohibiting the disclosure of information associated with executions, including the identities of executioners and other participants.²⁸⁹ These laws have made challenges to execution practices more difficult.²⁹⁰ It has been possible, however, to overcome that secrecy.²⁹¹ A person facing execution is already litigating issues that intertwine with the experiences of execution workers. Because cruelty necessarily includes the effects of the punishment, including harm to punishers, the person challenging that punishment is in the best position to bring such claims.

B. Constitutional Arguments

There are several avenues of constitutional analysis about the effects of executions on execution participants. First, litigants could bring these claims in method-of-execution challenges under 42 U.S.C. § 1983, although the Supreme Court has limited the utility of the Eighth Amendment in those challenges. Second, the evolving standards of decency analysis may offer opportunities to raise those claims. This Section addresses both of these arguments, but it also offers a new approach: rather than rely on legal structures that justify violence, it proposes a bright-line restriction on punishment. Finally, it describes the importance of these arguments in legislative abolition efforts. Each of these approaches is aimed at the work of redressing suffering. As Daniel Harawa explains, “reform, abolition, and minimalism” each “have an important role to play when thinking about the real-life consequences of penal administration.”²⁹²

1. Method-of-Execution Litigation Under 42 U.S.C. § 1983

The Supreme Court’s recent jurisprudence claims that the Eighth Amendment was intended to prohibit “long disused (unusual) forms of punishment that intensified the sentence of death with a (cruel) ‘superadd[ition]’ of ‘terror, pain, or disgrace.’”²⁹³ To prove that a state’s execution method or technique “cruelly superadds pain to the death sentence” in violation of the Eighth Amendment, a litigant “must show a feasible and readily implemented alternative method of execution that would significantly reduce a substantial risk of severe pain and that the State has refused

²⁸⁸ See Eisner, *Carrying*, *supra* note 70; DUFFY, *supra* note 44, at 227; OWENS & OWENS, *supra* note 23, at 178–79; Thompson, *supra* note 128; Silverstein, *supra* note 23.

²⁸⁹ See LAIN, *supra* note 30, at 256; KONRAD, *supra* note 17, at 4–5; Samantha Semiatin, Comment, *Lethal Injection Secrecy Laws: A Cruel and Unusual Solution for the Preservation of Capital Punishment*, 28 J. HEALTH CARE L. & POL’Y 49, 55–56 (2025).

²⁹⁰ See LAIN, *supra* note 30, at 265–66 (describing how secrecy laws limit judicial oversight).

²⁹¹ See *Miller v. Hamm*, No. 2:22-cv-506-RAH, 2022 WL 12029102 (M.D. Ala. Oct. 20, 2022); *see also infra* notes 314–315 and accompanying text (protective orders and litigation).

²⁹² Daniel S. Harawa, *In the Shadows of Suffering*, 101 WASH. U. L. REV. 1847, 1854 (2024).

²⁹³ *Bucklew v. Precythe*, 587 U.S. 119, 133 (2019) (quoting *Baze v. Rees*, 553 U.S. 35, 48 (2008)).

to adopt without a legitimate penological reason.”²⁹⁴ A litigant must demonstrate that the state’s execution practice is “sure or very likely to result in needless suffering.”²⁹⁵ Although this test is ineffective, litigants are stuck with it.²⁹⁶ Addressing executioner harms, however, may offer another, albeit unlikely avenue to limit some of the worst excesses of state execution practice.

Evidence demonstrating the harms associated with carrying out executions could be added to claims that a state’s processes carry a substantial risk of severe pain. The effects of cruelty, not just the intent to inflict suffering, are constitutionally significant, and those effects include the psychological, emotional, and physiological harms impacting the people who must carry out executions. Method-of-execution challenges contest state decisions about executions such as the method itself, choices about drugs, storage practices, testing for contaminants, protocol flaws, the execution team’s qualifications, or a litigant’s health conditions that increase the risk of error. These decisions create the substantial risk that the condemned will experience severe pain during an execution, which in turn increases the risk that execution participants will experience secondary trauma and moral injury.

Although execution participation appears to be inherently harmful, botched executions are more likely to cause secondary trauma to execution participants. An amicus brief filed in *Bucklew v. Precythe* by former corrections officials explained that “one of the principal sources of anxiety for corrections officials is the risk that an execution will be botched.”²⁹⁷ A botched execution “impugn[s] the competence of the people involved” and “make[s] it impossible for them to dissociate from the horror of their task.”²⁹⁸

Litigants have argued that executioner stress is likely to increase the risk of a botched execution. In *McGehee v. Hutchinson*, plaintiffs argued that Arkansas’s plan to conduct eight executions over ten days would increase the risk of a botch because the compressed schedule would reduce after-execution debriefing and increase executioners’ stress.²⁹⁹ The district court found that executioners would experience significant stress from the compressed execution schedule, which would in turn increase risks of human error that might produce severe pain and suffering.³⁰⁰ The Eighth Circuit reversed in part because it concluded that the district court had not sufficiently explained why the risk of pain was “exacerbated” by the anticipated schedule.³⁰¹ Similarly, in *Morales v. Tilton*, litigants argued that an execution team member’s “PTSD, and his vulnerability to stress, could have an adverse effect on his performance during executions, rendering his participation unfair to him and

²⁹⁴ *Id.* at 134.

²⁹⁵ *Glossip v. Gross*, 576 U.S. 863, 881 (2015).

²⁹⁶ See William W. Berry III, *State Constitutional Limits on Nitrogen Hypoxia Executions*, 2025 U. ILL. L. REV. 101, 125 (forthcoming); see also Klein, *Paper Tiger*, *supra* note 218, at 34–55.

²⁹⁷ *Bucklew* Amicus, *supra* note 112, at 8.

²⁹⁸ *Id.* at 8.

²⁹⁹ See Complaint at 26–28, *McGehee v. Hutchinson*, No. 4:17-cv-00179 KGB (E.D. Ark. Apr. 15, 2017).

³⁰⁰ *McGehee v. Hutchinson*, No. 4:17-cv-00179 KGB, 2017 WL 1399554, at *11–12 (E.D. Ark. Apr. 15, 2017).

³⁰¹ See *McGehee v. Hutchinson*, 854 F.3d 488, 492 (8th Cir. 2017).

dangerous to the inmate.”³⁰² The district court’s intended findings described California’s failure to routinely screen execution team members as a “critical deficiency[y].”³⁰³

A poorly trained execution team is more likely to botch an execution, which may cause serious pain.³⁰⁴ Inadequate training and support also increases the risk of trauma to the execution team.³⁰⁵ Team members operating under stress and pressure are more likely to make mistakes that contribute to pain and suffering of a person being executed.³⁰⁶ In evaluating whether a protocol is likely to cause needless suffering, a court should primarily evaluate the risk of harm to the condemned, such as an increased likelihood of a botch or the inherent cruelty of a method, but it should also consider the cruel effects on execution participants.

For example, State A buys pentobarbital from a compounding pharmacy, stores it improperly, and is cavalier about expiration dates and contamination testing.³⁰⁷ If the state tested and stored its drugs to ensure potency and lack of contamination, that would reduce the risk of a botched execution, reducing risks of harm for both the condemned and the prison staff. Or if State B chose to use nitrogen gas to execute, the violence and pain associated with that method unquestionably harms the person being executed and more overt violence is more likely to have a harmful effect on participants.³⁰⁸ Choosing a different method is likely to reduce both of those risks.

This approach has drawbacks. First, litigating method-of-execution challenges is difficult. The Supreme Court has set a high standard for these claims and has rejected evidence about pain in botched executions based on protocol differences (even if the drugs were the same) or for other errors.³⁰⁹ Following the Court’s lead, lower courts may find testimony from former execution participants less probative if they did not carry out executions under that jurisdiction’s current protocol.³¹⁰ The harms associated with execution participation may relate to specific state or protocol choices. But the emotional and mental harm associated with a botched execution does not—it arises from the botch itself and may be inherent to the act of state killing. Evidence from former execution participants is probative because it addresses the psychological impact of executions as a whole and because participants could testify

³⁰² *Morales* Brief, *supra* note 43, at 46.

³⁰³ *Morales v. Tilton*, 465 F. Supp. 2d 972, 979 (N.D. Cal. 2006).

³⁰⁴ *LAIN*, *supra* note 30, at 136–40; Eric Berger, *The Executioners’ Dilemmas*, 49 U. RICHMOND L. REV. 731, 759 (2015).

³⁰⁵ *Ray*, *supra* note 112; *LAIN*, *supra* note 30, at 232–33.

³⁰⁶ *LAIN*, *supra* note 30, at 9–26.

³⁰⁷ *See, e.g., Texas Dep’t of Crim. Just. v. Canales*, 715 S.W.3d 810, 814–15 (Tex. App. 2024); *LAIN*, *supra* note 30, at 170–71.

³⁰⁸ *See Boyd v. Hamm*, No. 2:25-cv-529-ECM, 2025 WL 2884410, at *16–18 (M.D. Ala. Oct. 9, 2025) (describing expert testimony addressing suffering during nitrogen executions); *infra* note 322 (discussing the effect of violent executions).

³⁰⁹ *See Glossip v. Gross*, 576 U.S. 863, 892–93 (2015); *Barr v. Lee*, 591 U.S. 979, 980–81 (2020).

³¹⁰ Testimony from former corrections officials has been accepted as expert testimony with regard to general execution standards and practices. In *McGehee*, a former warden from North Carolina testified about the stress and challenges associated with a compressed execution schedule. 2017 WL 1399554, at *11–12.

about the impact of botched executions.³¹¹ If greater specificity is needed, litigants could seek to depose current or former team members from that jurisdiction.³¹²

The secrecy surrounding state execution practices is not an insurmountable obstacle. Litigants have discovered the qualifications and, in some cases, identities of execution participants, even if that information may not be publicly disclosed.³¹³ This information could illuminate screening practices, psychological consequences of execution work, and jurisdictions' efforts at management.³¹⁴ Courts can manage concerns about public disclosure with appropriately drafted protective orders, anonymous depositions, and anonymous interrogatories.³¹⁵

Second, litigants must also identify a readily available alternative that would significantly reduce the risk that the state has refused to adopt without a "legitimate penological reason."³¹⁶ The nature of the harm associated with execution work makes it difficult to identify readily available alternatives that could reduce the risk. Increasing responsibility diffusion strategies would probably increase the risk of botched executions. Such strategies make it more likely that someone will make a mistake.³¹⁷ Further, it is unclear if responsibility diffusion is effective in mitigating trauma because executions participants have reported trauma even though most states adopt such strategies.

Another alternative, relying on volunteers, may actually exacerbate the risk. First, voluntary participation does not preclude harm.³¹⁸ State officials have announced that they prefer participants who would not want to execute, so maybe, regardless of voluntariness, those participants are more likely to experience moral discomfort from their work.³¹⁹ States may have a legitimate penological reason to reject volunteering. Allowing someone who is enthusiastic about killing conduct executions risks sadism or spectacle and would be inconsistent with the state's preferred presentation.³²⁰ The Supreme Court has recognized that states have a

³¹¹ Even if the witnesses carried out executions in a different state, many state protocols are similar and states use similar responsibility-diffusing strategies.

³¹² See, e.g., *Taylor v. Crawford*, No. 05-4173-CV-C-FJC, 2006 WL 1779035, at *1–2 (W.D. Mo. June 6, 2006) (summarizing discovery practices in lethal-injection litigation in Missouri).

³¹³ See *Miller v. Hamm*, No. 2:22-cv-506-RAH, 2022 WL 12029102 (M.D. Ala. Oct. 20, 2022); Ivana Hrynkiw & Kent Faulk, *Alabama Asks Judge to Keep its Execution Secrets a Secret*, AL.COM (Oct. 27, 2022), <https://www.al.com/news/birmingham/2022/10/alabama-asks-judge-to-keep-its-execution-secrets-a-secret.html>.

³¹⁴ See FED. R. CIV. P. 26(b); *id.* (c) (identifying standards for protective orders surrounding discovery). Anonymity is typically framed as a safety concern, but as Lain notes, secrecy statutes are aimed at protecting access to lethal injection drugs and execution equipment. See LAIN, *supra* note 30, at 258–61.

³¹⁵ Berger, *Lethal Injection Secrecy*, *supra* note 67, at 1398–99 & 1406 (discussing approaches to developing protective orders in lethal-injection litigation); *Taylor*, 2006 WL 1779035, at *1–2.

³¹⁶ *Bucklew v. Precythe*, 587 U.S. 119, 134 (2019).

³¹⁷ See TENNESSEE LETHAL INJECTION PROTOCOL INVESTIGATION: REPORT AND FINDINGS 33–38 (2022).

³¹⁸ See *supra* Section II.C.

³¹⁹ See *supra* note 48 and accompanying text.

³²⁰ AUSTIN SARAT, *WHEN THE STATE KILLS* 19 (2001) (explaining that the legitimacy of executions requires them to “appear to be different from the violence to which it is opposed and to which it is seen as a response”).

legitimate penological interest in the expressive function of executions, which includes witness and participant reactions, that outweighs serious risks of harm to the condemned.³²¹ Lethal injection is less visually distressing than older, more violent methods.³²² The reality is more complicated, of course, and botches may still cause trauma. Creating a false sense of peace appears to matter more to states and courts than limiting risks of serious harm to the condemned.³²³

A third alternative might be to reduce human involvement through automation. Idaho, which recently adopted the firing squad, initially planned to build a “remote-operated system” to carry out such executions with the express goal of limiting prison staff involvement in executions.³²⁴ States have used (or considered using) mechanical devices to conduct executions.³²⁵ But removing humans from executions is nearly impossible. Someone has to design and build the device or write the programming necessary for automation, someone has to operate the machine, and someone has to restrain the condemned person. Further, killing affects humans even with technological or physical distance. Analysts and drone operators experience trauma from their work, even though they may be thousands of miles away from the violence.³²⁶ Automation does not remove personal responsibility for participating in state killing or shield execution participants from harm.

³²¹ See *Baze v. Rees*, 553 U.S. 35, 57–58 (2008) (rejecting a two-drug protocol because Kentucky “has an interest in preserving the dignity of the procedure, especially where convulsions or seizures could be misperceived as signs of consciousness or distress”).

³²² LIFTON & MITCHELL, *supra* note 22, at 75; LAIN, *supra* note 30, at 59 (comparing lethal injection’s appearance and reality); Rimer, *supra* note 31; *Witness to an Execution*, *supra* note 28 (“I am glad of is that we’re not using electric chair. I don’t think I would want to be part of that. This process here, it’s clinical. The inmate, other than the fact that he’s expired, you don’t know anything has happened to him. And, you know, that’s good.”).

³²³ *Baze*, 553 U.S. at 73 (Stevens, J., concurring in the judgment) (“Whatever minimal interest there may be in ensuring that a condemned inmate dies a dignified death, and that witnesses to the execution are not made uncomfortable by an incorrect belief (which could easily be corrected) that the inmate is in pain, is vastly outweighed by the risk that the inmate is actually experiencing excruciating pain that no one can detect.”); Blecker, *supra* note 249, at 986; Stinneford, *supra* note 203, at 462–63; Mark Dow, “*The Line Between Us and Them*”: Interview with Warden Donald Cabana, in *MACHINERY OF DEATH*, *supra* note 65, at 175, 188 (“So much of what goes on in this execution business is built upon what caters to public feelings.”).

³²⁴ Kevin Fixler, *Idaho Plans for Firing Squad Executions—Aiming to Keep Prison Staff from Rifles*, IDAHO STATESMAN (Sept. 2, 2025), <https://www.idahostatesman.com/news/local/crime/article311893632.html>. Idaho ultimately elected to rely on volunteer police officers after it was unable to develop a remotely operated system. See Kevin Fixler, *Idaho Will Soon Turn to Firing Squad Executions. Police Will Pull Triggers*, IDAHO STATESMAN (June 11, 2026), <https://www.idahostatesman.com/news/local/crime/article316066906.html>.

³²⁵ See TROMBLEY, *supra* note 22, at 104–08 (interviews with Missouri corrections officers about lethal injection machinery); Deborah W. Denno, *The Firing Squad as “A Known and Available Alternative Method of Execution”* Post-Glossip, 49 U. MICH. J. L. REFORM 749, 790–91 (2016) (describing the firing squad machine Nevada used in 1912).

³²⁶ PRESS, *supra* note 18, at 101–02 & 106–08 (discussing the harms experienced by drone operators and intelligence analysts involved in drone operations).

If there is not a readily available alternative, the challenger loses.³²⁷ The difficulty of making claims under the *Glossip* analysis might make trying novel claims about executioners pointless. Courts, taking their cue from the Supreme Court, are hostile to method-of-execution claims.³²⁸ Nevertheless, there are good reasons to litigate.

First, these arguments may be most useful in claims addressing flawed execution procedures or as-applied challenges. Considering the risks associated with botches beyond the impact on the person being executed, the higher probability of cruel effects lends weight to litigants' arguments that an alternative would reduce the risk. It may produce incremental gains to immediately address a condemned person's suffering.³²⁹ On the other hand, because the Eighth Amendment does not require a painless execution,³³⁰ courts may conclude that it does not require states to avoid harming their employees who carry out the execution. Such pain may be inevitable.

This, however, supports the second reason to raise these arguments: courts and states should have to confront this harm. The public should learn more about the full cost of capital punishment. If courts and government officials are willing to tolerate questionable execution practices, then they should be aware of, and accountable for the consequences to the people who do their dirty work. The stigma associated with executioners may inspire indifference, but those experiences are part of the cost of imposing capital punishment and courts should have to address those concerns or admit their indifference. States might fall back on the argument that a paralytic provides comfort to executioners through an ostensibly peaceful visual. The state should have to admit that it wants the illusion of a peaceful execution to make the dirty work of killing easier.³³¹

2. Constitutional Abolition

An incremental approach in method-of-execution litigation that assesses executioners' harms may help build support for abolition while operating within the Supreme Court's stunted interpretation of the Eighth Amendment. But the harms executioners experience arise from institutional practices that lead to moral disengagement, dignitary harms, and moral injury.³³² Abolition is the most responsive solution. Constitutional abolition efforts that evaluate punishers' interests do not displace the interests of people facing execution. These interests

³²⁷ *Glossip v. Gross*, 576 U.S. 863, 878–79 (2015).

³²⁸ See Lee Kovarsky, *The Trump Executions*, 100 TEX. L. REV. 621, 674–78 (2022).

³²⁹ See Harawa, *supra* note 292, at 1881 (“[W]e can pursue different strategies and hope that together, the projects work to radically reduce the amount of suffering left in the wake of the quest for ‘justice.’”).

³³⁰ *Bucklew v. Precythe*, 589 U.S. 119, 132–33 (2019).

³³¹ See *Glossip v. Gross*, 576 U.S. 863, 977 (2015) (Sotomayor, J., dissenting) (“The States may well be reluctant to pull back the curtain for fear of how the rest of us might react to what we see. But we deserve to know the price of our collective comfort before we blindly allow a State to make condemned inmates pay it in our names.”).

³³² Dolovich, *Excessive*, *supra* note 105, at 447–48.

overlap: protecting the individual dignity of death-sentenced people protects punishers' individual dignity.

Both the U.S. and state constitutions' provisions against cruel and unusual punishment offer abolitionist opportunities. Most state constitutions have clauses analogous to the Eighth Amendment, although there may be important textual differences.³³³ Some states have interpreted these provisions in “lock-step” with the Eighth Amendment, restricting the independent development of state constitutional law.³³⁴ Others have adopted their own interpretations that have been influenced by the Supreme Court's Eighth Amendment jurisprudence.³³⁵ While states can interpret their own constitutions in ways that are broader than the Supreme Court's current approach, their interpretations often track the Eighth Amendment or draw on its principles.

The Supreme Court has interpreted the Eighth Amendment's applicability to punishments narrowly and may be inclined to further restrict it.³³⁶ In *Grants Pass v. Johnson*, the Court applied its “superadded” analysis to noncapital punishments, explaining that fines and incarceration for unhoused people were not cruel because they were not “designed to ‘superad[d]’ ‘terror, pain, or disgrace.’”³³⁷ “Superadded” punishments are prohibited for their extreme effect on the person being punished.³³⁸ Assuming the Court retains and develops this myopic approach to the Eighth Amendment, it may still be possible to develop principles that include punishers' harms in Eighth Amendment analyses of cruelty. Those punishments would also implicate punishers' dignity: to carry out torturous punishments would be degrading and dehumanizing to the punisher.

The evolving standards of decency analysis offers another avenue. In evaluating the constitutionality of capital punishment for a particular type of offense, or a particular category of offenders, courts consider whether the imposition of the death penalty is consistent with the “evolving standards of decency that mark the progress of a maturing society.”³³⁹ This analysis evaluates both (1) the “existence of objective indicia of consensus” and (2) a court's “independent judgment.”³⁴⁰ De Lilly

³³³ Berry, *Unlocking*, *supra* note 220 (manuscript at 9–11).

³³⁴ *Id.* (manuscript at 3); Michael L. Smith, *Species of State Constitutional Lockstepping*, 71 VILLANOVA L. REV. (forthcoming 2026) (manuscript at 3).

³³⁵ *See, e.g.*, *State v. Mata*, 745 N.W.2d 229, 263 (Neb. 2008) (using the evolving standards of decency analysis to assess the constitutionality of execution methods under the Nebraska Constitution); *Dawson v. State*, 554 S.E.2d 137, 139–40 (Ga. 2001) (applying the evolving standards of decency in assessing the Georgia Constitution); *State v. Santiago*, 122 A.3d 1, 30–31 (Conn. 2015) (applying the evolving standards of decency to evaluate the Connecticut Constitution).

³³⁶ *See City of Grants Pass, Or., v. Johnson*, 603 U.S. 520, 542–43 (2024); Meghan J. Ryan, *The Death of the Evolving Standards of Decency*, 51 FLA. ST. U. L. REV. 255 (2024).

³³⁷ *Grants Pass*, 603 U.S. at 543. This analysis has inched closer to an intentional standard, rather than an effects-based one, despite originalist analysis making a compelling case for the latter. *See generally* Stinneford, *supra* note 203.

³³⁸ *See Bucklew v. Precythe*, 589 U.S. 119, 130–31 (2019).

³³⁹ *Roper v. Simmons*, 543 U.S. 551, 561 (2005) (quoting *Trop v. Dulles*, 356 U.S. 86, 100–01 (1958)); *see also* Kathryn E. Miller, *No Sense of Decency*, 90 WASH. L. REV. 115, 118–19 (2023).

³⁴⁰ *Kennedy v. Louisiana*, 554 U.S. 407, 422 (2008); Miller, *supra* note 339, at 12–24.

proposes that litigants challenging the constitutionality of capital punishment should introduce social science research on secondary trauma associated with execution participation in the evolving standards of decency analysis.³⁴¹ She argues that a combined analysis that assesses both the decline in the use of capital punishment and the harms associated with it justify abolition via the Eighth Amendment.³⁴² This approach has promise—for example, defendants recently challenged the constitutionality of capital punishment in Kansas under both the U.S. and Kansas Constitutions drawing on well-developed arguments about jurors, racial bias, cost, and deterrence.³⁴³ Evidence about the impact of executions on executioners, such as first-hand testimony of former executioners and researchers, could have provided additional useful data to evaluate the impact of capital punishment.

Another approach may be to evaluate whether the evolving standards of decency prohibit inflicting punishments that degrade and dehumanize both the punished and punisher. Assessing the effects of punishment in ways that include the degradation and injuries that all participants experience permits a broader inquiry that evaluates the dignity of individuals and society.³⁴⁴

Objective indicia in evolving standards of decency analyses have evaluated the frequency with which certain punishments are imposed, legislative enactments, legislative trends, and other evidence to identify a national consensus.³⁴⁵ Prohibitions on corporal punishment and legislative enactments protecting prisoners' rights may support a national consensus against inflicting degrading punishments. Alternatively, evaluating both historical evidence and current practices suggests a consistent awareness that carrying out executions can be harmful. Virtually every state that executes has adopted some form of responsibility diffusion. Shifting the burden of killing or seeking plausible deniability are traditional, if unsuccessful, practices. Admittedly, the consensus evidence is not particularly strong, but it is not dispositive in the evolving standards of decency analysis—a court's independent judgment is still critical.³⁴⁶

The independent judgment component of the evolving standards of decency assesses justifications for the punishment, such as retribution and deterrence, and

³⁴¹ De Lilly, *supra* note 22, at 141–42.

³⁴² *Id.* at 135–36.

³⁴³ *Kansas v. Fielder*, Nos. 2018-CR-000640 & 2019-CR-001144 (Wyandotte Cty. Dist. Ct. Apr. 16, 2025), available at <https://dpic-cdn.org/production/documents/Kansas-Order-Clean-Version-18CR640-19CR1144-Decision.pdf?dm=1746724989>. The court found serious constitutional problems with the death penalty but did not reach a final decision because the defendants were no longer subject to the penalty at the time it issued its decision. *Id.* at 14–15. *See also District Court Judge Calls Death Penalty Racially Biased, Costly, and Ineffective as a Deterrent*, DEATH PENALTY INFO. CTR. (May 19, 2025), <https://deathpenaltyinfo.org/news/district-court-judge-calls-kansas-death-penalty-racially-biased-costly-and-ineffective-as-a-deterrent>.

³⁴⁴ *See Ristroph*, *supra* note 246, at 1059 (“It is inhumane to inflict certain types of violence, no matter how reprehensible the actions of the target of violence may be.”).

³⁴⁵ *Miller*, *supra* note 339, at 122–23 (summarizing evidence used to determine the national consensus).

³⁴⁶ *Kennedy v. Louisiana*, 554 U.S. 407, 434 (2008).

proportionality to determine whether the penalty is excessive.³⁴⁷ Proportionality inquiries typically address imposing capital punishment based on offender culpability or when life is not taken.³⁴⁸ This inquiry could be expanded. Scholars have, for example, suggested that the moral injury associated with military service could inform decisions about the proportional and justifiable use of military force.³⁴⁹ The collateral damage associated with inflicting capital punishment could be considered in a proportionality analysis. A punisher's role and experiences of degradation that result from inflicting punishment, along with any effects of that punishment, are relevant to determining whether a punishment is proportional. These collateral harms include dignitary injuries like participants' moral disengagement, dehumanization, and psychological effects of execution participation. The suffering, degradation, and moral harms associated with death row and the process of execution experienced by the punished and the punishers make the penalty excessive.

Punishment that is impermissibly degrading to both the punisher and punished undercuts the justifications for punishment.³⁵⁰ Retribution by itself cannot justify inflicting degrading punishments, regardless of institutional needs or safeguards.³⁵¹ Punishments that require dehumanization and trigger dignitary harms such as moral injury are inconsistent with retributive purposes because they produce cruel effects in those who punish who do not deserve to be punished. In *Furman v. Georgia*, Justice Brennan suggested that it is “doubtful that the infliction of death by the State does in fact strengthen the community's moral code.”³⁵² Rather, he suggested, “it more likely tends to lower our respect for life and brutalize our values.”³⁵³ Rather than deter criminal conduct, punishments that degrade may discourage respect for law because of their pointless cruelty.³⁵⁴ Punishment that requires the punisher to suppress humanity may, in fact, increase unlawful violence by those tasked with carrying out the law.³⁵⁵ The evolving standards of decency

³⁴⁷ See *id.* at 435–36; Miller, *supra* note 339, at 123.

³⁴⁸ See *Gregg v. Georgia*, 428 U.S. 153, 187 (1976); *Kennedy v. Louisiana*, 554 U.S. 407, 437 (2008); *Coker v. Georgia*, 433 U.S. 584, 598 (1977) (plurality opinion); *Enmund v. Florida*, 458 U.S. 782, 797 (1982); *Tison v. Arizona*, 481 U.S. 137, 158 (1987).

³⁴⁹ See Kirkpatrick, *supra* note 139, at 31 (“If killing unjustifiably has a positive correlation with moral injury, then there is a possibility that fighting for an unjust cause may lead to numerically more cases of moral injury, and this may provide an additional consideration for just war criteria.”); Wood, *supra* note 120, at 524–25 (arguing that moral injury and psychological harm “must be accounted for when making a proportionality assessment concerning the permissibility of war”); see also Ristroph, *supra* note 246, at 1059 (“If the ethics of criminal justice were inspired by the ethics of war, we might adopt the view that collateral damage matters to the ethical analysis of the criminal justice system.”).

³⁵⁰ *Jackson v. Bishop*, 404 F.2d 571, 580 (8th Cir. 1968).

³⁵¹ *Id.* at 579–80.

³⁵² *Furman v. Georgia*, 408 U.S. 238, 303 (1972) (Brennan, J., concurring).

³⁵³ *Id.*; see also BECCARIA, *supra* note 14, at 55 (“The death penalty is not useful because of the example of cruelty that it gives to men.”).

³⁵⁴ Whether capital punishment deters is ambiguous at best. See *Glossip v. Gross*, 576 U.S. 863, 930 (2015) (Breyer, J., dissenting).

³⁵⁵ See Dolovich, *Excessive*, *supra* note 105, at 426.

should prohibit punishments that are degrading and dehumanizing to both the punished and punisher alike.³⁵⁶

But if a death sentence is deemed truly deserved, then the cost of inflicting that punishment and its damaging effects on punishers is one that society may be willing to hand off to some of its members. That assumption animates dirty work: it must be done, and someone else that society does not have to think too much about bears its ultimate cost.³⁵⁷ The problem is, as Ristroph points out, justifications for violence do not limit violence, rather they “help overcome inhibitions against the use of violence.”³⁵⁸ She proposes that criminal law should, drawing from the law of war, adopt a *jus in poena* that would limit violence “independent of any claim about the justification of that violence.”³⁵⁹ Ristroph observes that while a *jus in poena* “need not be grounded in the Eighth Amendment,” such an interpretation is “logical” given the “fundamentally humanitarian principle” of its prohibition on cruelty.³⁶⁰

Instead of assessing justifications for inflicting punishment, constitutional prohibitions on cruelty should be conceptualized as guiding principles to restrict cruelty, regardless of its presumed necessity or the state’s intent. Cruelty is a broader concept than simply physical suffering: it includes the dignitary harms, mental and emotional suffering, dehumanization, and degradation associated with capital punishment.³⁶¹

This approach, which draws on Ristroph’s concept of a *jus in poena*, would require courts to assess punishment practices for harm inflicted on the punished and secondary effects on punishers. Cruelty necessarily includes the intended and unintended effects of a punishment. A prohibition on cruelty should reach the direct and secondary harms arising from capital punishment. The effects of capital punishment are unquestionably cruel: it causes physical suffering and extreme emotional harm to the person being executed, and it is harmful to those who must execute on behalf of the state. Execution participants are not being punished, but the effects of state cruelty include the secondary impacts on punishers who carry out the dirty work of capital punishment: dehumanization, moral disengagement, moral injury, and psychological trauma. These cruel effects damage participants’ individual dignity, and the human toll associated with carrying out executions is damaging to society’s collective dignity.

In fashioning such a principle, this Article draws on older principles emphasizing the link between cruelty and dignity and the arguments this Article describes: Constitutional prohibitions on cruelty forbid punishments that degrade the dignity not only of the punished but also of the punishers.³⁶² The harms to the

³⁵⁶ A broad understanding of collateral harms admittedly may create a utilitarian nightmare. Drawing the line at punishers offers a workable limit because they inflict punishment on behalf of society and the dignitary harms of the people who do society’s dirty work influence society’s collective dignity.

³⁵⁷ See *supra* notes 49–53 and accompanying text.

³⁵⁸ Ristroph, *supra* note 246, at 1056.

³⁵⁹ *Id.*

³⁶⁰ *Id.* at 1058.

³⁶¹ See Berry, *Unlocking*, *supra* note 220 (manuscript at 30).

³⁶² See *Furman v. Georgia*, 408 U.S. 238, 291 (1972) (Brennan, J., concurring).

condemned are abundantly clear, even if courts are not willing to accord them meaningful weight.³⁶³ Determining that a person must be executed and executing them is harmful to their dignity because it is a conclusion that the person’s life lacks value and they do not deserve to exist.³⁶⁴ It negates their humanity.

Carrying out executions is also dehumanizing because it requires a person to transform into a tool of the state.³⁶⁵ The state treats executioners as a means to an end by putting them in a role in which they are required to negate human impulses and instincts to carry out work that society demands but can ultimately disavow.³⁶⁶ In reflecting on the executioner’s role, Susan Bandes suggests that, rather than considering whether executioners can be proud of their work, we should ask “whether they ought to be asked to do that work at all.”³⁶⁷ It is cruel to put a person in a position where they may have to betray their own beliefs, professional obligations, or modify their moral reasoning to justify carrying out violence on behalf of the state.³⁶⁸ Execution workers have to wrestle with complicated moral questions about whether they may have executed an innocent person or their role within a system that is arbitrary and inequitable.³⁶⁹ They may be blamed for errors in execution processes that are products of poor and careless institutional design.³⁷⁰ The dirty work of executions instrumentalizes participants while gradually eroding their well-being.³⁷¹

Executions harm participants’ dignity. They have reported feelings of shame and guilt arising from their work.³⁷² And while they express a desire to carry out a

³⁶³ Capital punishment inflicts physical and psychological harm on a person who is sentenced to death and has been described as torture. See *In re Medley*, 134 U.S. 160, 172 (1890); *Furman*, 408 U.S. at 287–89; *District Attorney for Suffolk Dist. v. Watson*, 411 N.E.2d 1274, 1283 (Mass. 1980); *id.* at 1290–91 (Liacos, J., concurring); *State v. Ross*, 656 A.2d 1318, 1379 (Conn. 1994) (Berdon, J., dissenting in part); *People v. Anderson*, 493 P.2d 880, 894 (Cal. 1972); BESSLER, *supra* note 129, at 84–95; Berry, *Unlocking*, *supra* note 220, (manuscript at 30–31); JOHNSON, *supra* note 16, at 210–13. Courts are reluctant to recognize psychological harms associated with the imposition of capital punishment, which generally arise from the length of time, conditions of death row, and death sentence. See *Lackey v. Texas*, 115 S. Ct. 1421, 1421–22 (1995) (Stevens, J., memorandum respecting the denial of certiorari); Lee Kovarsky, *Suffering Before Execution*, 109 VA. L. REV. 1429, 1446–47 (2023). Courts have simply announced that the psychological harms are “unavoidable consequences” of capital punishment and the Eighth Amendment does not require addressing them. See, e.g., *Boyd v. Hamm*, No. 2:25-cv-529-ECM, 2025 WL 12884410, at *21 (M.D. Ala. Oct. 9, 2025).

³⁶⁴ *Furman*, 408 U.S. at 290.

³⁶⁵ See *supra* note 77; *Weems v. United States*, 217 U.S. 349, 373 (1910) (“Cruelty might become an instrument of tyranny; of zeal for a purpose, either honest or sinister.”)

³⁶⁶ See *supra* note 238 and accompanying text.

³⁶⁷ Bandes, *supra* note 22, at 184.

³⁶⁸ See *id.* at 193–94 (describing execution participants’ moral responses to their work).

³⁶⁹ See *supra* notes 152–156 (contradictions in corrections officers’ professional obligations); *infra* notes 393–394 and accompanying text (discussing corrections officers’ concern about actual innocence).

³⁷⁰ See *supra* note 62 and accompanying text.

³⁷¹ Cf. G. Alex Sinha, *The Thin Blue Line Between Virtue and Vice: Confronting the Moral Harms of Policing*, 84 U. PITT. L. REV. 1, 17 (2022) (proposing, in the context of virtue jurisprudence, that law “avoid operating in a way that systematically makes us morally worse people”).

³⁷² See *supra* Section II.B.

dignified procedure,³⁷³ they do so through dissociation, moral disengagement, and dehumanization—injuries that can be felt years after an execution—even if their participation was voluntary. It requires performing tasks that produce feelings of degradation and may damage personal dignity. If the state’s decision to kill is harmful to the condemned’s dignity as a person, it is also harmful to require someone to kill that person: it consigns them to carry out society’s dirty work at the expense of their own physical and emotional well-being. An analysis that justifies capital punishment can rationalize this cost. A prohibition on cruelty that draws on human dignity cannot.

People v. Anderson, which held that the death penalty violated California’s constitution, signaled such limitations, explaining that the constitutional status of capital punishment should not depend on “the ‘mere extinguishment of life,’ . . . but with the total impact of capital punishment, from the pronouncement of the judgment of death through the execution itself, both on the individual and on the society which sanctions its use.”³⁷⁴ The Supreme Court of California concluded that capital punishment “degrades and dehumanizes all who participate in its processes.”³⁷⁵ *Anderson* quoted debates on the abolition of capital punishment in England that observed that rejection of more brutal forms of punishment like drawing and quartering arose, not from sympathy for the condemned, but from “the view that it was a punishment no longer consistent with our self respect.”³⁷⁶

Executions are also an unusual form of state violence. First, the process is frequently experimental, something that is harmful for the condemned and puts participants in the position of conducting fatal experiments on human beings. Departments of correction design and test new methods or techniques with little research or expertise.³⁷⁷ When Alabama began using nitrogen gas to execute, for example, it claimed unconsciousness would occur in a few seconds, which turned out to be inaccurate.³⁷⁸ Alabama’s department of corrections had no way of knowing how the method would affect its employees. Second, executions are unusual in comparison with other forms of permissible state violence, which is primarily exercised in situations of necessity. Police officers may lawfully use violence or deadly force in response to immediate threats to life and safety.³⁷⁹ The lawful violence of war is

³⁷³ See JOHNSON, *supra* note 16, at 128–29 (describing an execution team’s commitment to dignified and “proper” procedure).

³⁷⁴ *People v. Anderson*, 493 P.2d 880, 892 (Cal. 1972).

³⁷⁵ *Id.* at 899.

³⁷⁶ *Id.* (quoting 268 Hansard, Parliamentary Debates (5th Series) (Lords, 43d Parl., First Sess., 1964—1965) (1965) p. 703.)).

³⁷⁷ Berry, *Nitrogen*, *supra* note 296, at 1161; Berger, *Dilemmas*, *supra* note 304, at 743; LAIN, *supra* note 30, at 131–40; .

³⁷⁸ Bernard E. Harcourt, *Human Experimentation in Alabama*, THE 13/13 ESSAYS (Jan. 31, 2024), <https://the1313.law.columbia.edu/2024/01/31/bernard-e-harcourt-human-experimentation-in-alabama/>; Boyd v. Hamm, at *18 n.36 (“[T]he time to unconsciousness is longer than the mere ‘seconds’ the State previously anticipated.”).

³⁷⁹ See Rachel A. Harmon, *When is Police Violence Justified?*, 102 NW. U. L. REV. 1119, 1128–36 (2008); Brandon Garrett & Christopher Slobogin, *The Law on Police Use of Force in the United States*, 21 GERMAN L.J. 1526, 1533–35 (2020)

generally justified by a need to use proportional force in self-defense.³⁸⁰ Execution participants with military training have described the violence of capital punishment as distinct from those settings.³⁸¹ In capital punishment, there is no immediate threat to those who must kill—COs may, in fact, believe that the person being executed is not a threat in prison and should not be executed.³⁸²

Execution work may co-opt participants into acts of vengeance, or at least encourage them to consider it to carry out their work.³⁸³ Reviewing the crimes of the person being executed may assist execution participants in seeing the offender as less than human and deserving of death.³⁸⁴ While reminding oneself of an offense is not necessarily an act of vengeance, relying on past violence to justify impending violence invites revenge. Departments of corrections are aware of both the risk of vengeance and humanity, which is why some of them have imposed rules restricting who can carry out executions.³⁸⁵ It is why executioners are ostensibly virtuous because inviting sadists and vengeful participants would undermine respect for the law. But a virtuous executioner may have to surrender their dignity to carry out the law.

If the Eighth Amendment “embodies ‘broad and idealist concepts of dignity, civilized standards, humanity, and decency,’” then those standards and concepts must underlie the way in which punishments are adopted and imposed.³⁸⁶ The institutional cruelty of capital punishment damages the dignity and humanity of the punished and punishers. That cruelty, both direct and collateral, is inconsistent with those constitutional values.

3. *Legislative Abolition*

The problem of secondary trauma associated with executions deserves greater scrutiny in legislative decisions about executions and capital punishment. Legislatures have not given the question of secondary trauma to execution participants the weight it deserves. While legislatures have sometimes considered secondary trauma,³⁸⁷ they may dismiss concerns because participation is voluntary

³⁸⁰ Ristroph, *supra* note 246, at 1030.

³⁸¹ See Dow, *supra* note 323, at 187–88 (explaining that military service in Vietnam “didn’t prepare me for the execution process”; executions are “different”). LIFTON & MITCHELL, *supra* note 22, at 91 (interview with warden in North Carolina who contrasts military killing and executions); Rehagen, *supra* note 123 (“I had been trained to kill people in the Army, but this was totally different.”). But see JOHNSON, *supra* note 16, at 130 (CO implies that military work and prior exposure to violence made executions easier).

³⁸² See *supra* note 135 and accompanying text. See also PRESS, *supra* note 18, at 116 (describing concerns about remote killing in military operations).

³⁸³ See Berry, *Unlocking*, *supra* note 220 (manuscript at 34–35).

³⁸⁴ See *supra* note 81 and accompanying text.

³⁸⁵ See *supra* notes 75–76 and accompanying text.

³⁸⁶ *Estelle v. Gamble*, 429 U.S. 97, 102 (1976) (quoting *Jackson v. Bishop*, 404 F.2d 571, 579 (8th Cir. 1968)).

³⁸⁷ See Gil et al., *supra* note 109, at 25; *Kentucky’s Death Penalty: A Comprehensive Look*, WKMS (Aug. 12, 2014), <https://www.wkms.org/government-politics/2014-08-12/kentuckys-death-penalty-a-comprehensive-look>; Susan Greene, *Colorado Death Penalty Repeal Testimony: “Flashbacks Still Haunt Me Today”*, COLO. INDEP. (Mar. 20, 2013),

or fail to consider the risks.³⁸⁸ Raising these arguments in method-of-execution claims and abolition-focused litigation may push legislatures to consider secondary trauma and collateral harm in making decisions about capital punishment.

Legislative decision-making about methods of execution have primarily focused on retaining capital punishment and minimizing litigation over those methods.³⁸⁹ The secrecy laws that many states have adopted are intended to facilitate executions by concealing the source of execution drugs, but they also make it harder for the people involved in state killing to be heard. These laws conceal the people who must kill on behalf of the state. Anonymity may facilitate executions, but it also makes it easier for legislators to authorize killing when they do not have to think about who is doing it.

Delegating discretion to departments of correction to develop execution protocols insulates legislators, executive officials, and the public from the dirty work of carrying out executions. Legislators can reap political rewards by authorizing new methods of execution to appear tough on crime and execution delays. This delegation is problematic. As former corrections officials involved in executions have argued, giving agencies flexibility without meaningful oversight increases the risk of botched executions and harm to the person being executed, as well as the people who must attempt to carry out a dignified execution in the name of the state at the expense of their well-being.³⁹⁰

Legislators should have to grapple with the reality of capital punishment, including what their decisions mean for the people who carry out the consequences of their legislation. They should have to consider the collateral damage of executions when making decisions about capital punishment in addition to the cruelty associated with time on death row, racial bias, arbitrariness, and other well-documented problems with the administration of capital punishment.³⁹¹ Former execution participants have supported abolition efforts. When Colorado was considering abolishing the death penalty, a group of former corrections professionals involved in executions wrote to describe the “potential awful and lifelong repercussions that come from participating in the execution of prisoners.”³⁹² The letter identified another

<https://www.coloradoindependent.com/2013/03/20/colorado-death-penalty-repeal-hearing-marked-by-emotional-testimony/>.

³⁸⁸ See *supra* notes 176–177 and accompanying text.

³⁸⁹ Deborah W. Denno, *Getting to Death: Are Executions Constitutional?*, 82 IOWA L. REV. 319, 388–90 (1997); Berger, *Dilemmas*, *supra* note 304, at 755.

³⁹⁰ Bucklew Amicus, *supra* note 112, at 9–10; JOHNSON, *supra* note 16, at 129 (“[N]o one on the execution team seeks to inflict suffering on the condemned prisoner. . . . Abuse is not only unprofessional but impractical, because it is likely to trigger resistance.”) ; *but see* SUSAN F. SHARP, HIDDEN VICTIMS: THE EFFECTS OF THE DEATH PENALTY ON FAMILIES OF THE ACCUSED 104–05 (2005) (condemned’s sister heard rumors COs caused a botch and that there was a betting pool on whether her brother would be executed); TROMBLEY, *supra* note 22, at 118 (corrections officers “taunt[ing] death row inmates”); Lynch, *supra* note 26, at 22 (describing callous behavior by death row staff after executions).

³⁹¹ See Seal et al., *supra* note 26, at 260 (discussing the importance of evaluating secondary trauma and capital punishment).

³⁹² Letter from Corrections Professionals, *supra* note 23, at 1.

consequence that haunted some of them: the possibility that they might have executed an innocent person.³⁹³ “No one,” they wrote, “has the right to ask a public servant to take on a lifelong sentence of nagging doubt, and for some of us, shame and guilt.”³⁹⁴ Ohio Governor Mike DeWine, who originally cosponsored a bill that reintroduced the death penalty in Ohio post-*Gregg*, recently called for abolition, in part because of the harm to those who carry out executions.³⁹⁵ Recognizing the harm to execution participants’ dignity may strengthen abolition efforts and create new coalitions, even if some proponents are unsympathetic towards persons facing execution. As one Indiana legislator who introduced a bill to abolish capital punishment explained, “[T]hey care for these prisoners, feed them, house them, and then in the end they kill them, . . . I just don’t think that’s the right way to do it.”³⁹⁶

C. *The Effects of Considering Punishers’ Harms*

One critique of the arguments in this Article is that focusing on execution participants risks evading the very real harms experienced by the people who will be executed. In other words, it is inappropriate to focus on whether people who inflict the state’s cruelty suffer because of their work in light of more severe suffering. Execution participation is voluntary and not all participants experience emotional harm from their work. If capital punishment is a human rights violation and a form of torture, then concern for participants in the machinery of death may seem misplaced.

First, successful legal reforms have, at times, considered the interests of persons outside the group seeking reform, such as challenges to sex-based classifications.³⁹⁷ This strategy can dismantle harmful barriers and develop reform by appealing to broader interests. Assessing the harm to execution participants can build greater awareness of the costs of capital punishment in ways that protects the dignity of all persons.

Second, an honest conversation about capital punishment requires considering people who have inflicted violence. A person who has been sentenced to death has been convicted of a criminal offense that has seriously harmed other people. That fact does not negate their suffering during their incarceration and executions. Nor does it negate the trauma they may have already experienced.³⁹⁸ A person who has been

³⁹³ *Id.*

³⁹⁴ *Id.*

³⁹⁵ Scott Simon, *Ohio Gov. Mike DeWine Explains Why He Called for Abolishing the State’s Death Penalty*, NPR (June 20, 2026), <https://www.npr.org/2026/06/20/nx-s1-5862074/ohio-gov-mike-dewine-explains-why-he-called-for-abolishing-the-states-death-penalty>.

³⁹⁶ Tim Spears, *Gov. Braun’s Pause on Executions Prompts Call to End Indiana’s Death Penalty*, WISHTV.COM (June 7, 2025), <https://www.wishtv.com/news/i-team-8/gov-brauns-pause-on-executions-prompts-call-to-end-indianas-death-penalty/>

³⁹⁷ See, e.g., *Craig v. Boren*, 429 U.S. 190 (1976); *Weinberger v. Wiesenfeld*, 420 U.S. 636 (1975); *Frontiero v. Richardson*, 411 U.S. 677 (1973).

³⁹⁸ Mitigation evidence often reveals that people sentenced to death have experienced serious poverty, abuse, and trauma, have mental illness and histories of drug and alcohol abuse. See *Rompilla v. Beard*, 545 U.S. 374, 390–93 (2005); Corinna Barrett Lain, *Three Observations About the Worst of the Worst*,

sentenced to death is a human who has the right to dignity, and the law forbids inflicting unconstitutional cruelty on them.

To use capital punishment is to delegate the task of killing poor, marginalized people to others who, although inhabiting roles that carry elements of state power, experience their own marginalization and stigmatization.³⁹⁹ Joe Giarratano, who spent decades on Virginia’s death row, wrote that the COs “have very human eyes, just like the other human beings around me and just like those of my dead friends.”⁴⁰⁰ People who carry out death sentences are also human, and their work can be severely damaging. The veneer of voluntariness attached to execution participation should not limit scrutiny of those harms. Systems of punishment involve human violence, both in the conduct leading to punishment and those who end up inflicting it on behalf of the state. The source of cruelty is not only the anonymous correctional officers who carry out executions—it is the state that demands that they conduct executions—and what happens to them because of it is a part of the system of capital punishment.

The harmful impact of executions extends beyond executioners. A full accounting is beyond the scope of this Article, but it offers a few observations. Judges, jurors, executive branch officials, and attorneys may also experience harm from their participation in the capital punishment system, either by choosing death, litigating on behalf of clients to save their lives, upholding death sentences, or witnessing executions as part of their job duties.⁴⁰¹ To be part of this system may be in and of itself harmful. Family members of victims and of the condemned may experience serious harm and trauma from execution.⁴⁰² These collateral harms deserve

Virginia-Style, 77 WASH. & LEE L. REV. ONLINE 469 (2021); Russell Stetler, Maria McLaughlin & Susan Garvey, *Mitigation That Worked: Empirical Evidence of Why Jurors Rejected the Death Penalty in Some Highly Aggravated Capital Cases*, 53 HOFSTRA L. REV. 729 (2025); Maurice Chammah, *The Mercy Workers, THE MARSHALL PROJ.* (Mar. 2, 2023), <https://www.themarshallproject.org/2023/03/02/death-penalty-mitigation-specialists-rare-look>.

³⁹⁹ See *supra* Part II; Berger, *Dilemmas*, *supra* note 304, at 761 (discussing the powerlessness of execution team members); Bades, *supra* note 22, at 197; Dolovich, *Excessive*, *supra* note 105, at 464–65 (state authority and delegation of state power); PRESS, *supra* note 18, at 268 (discussing the role that inequality plays in putting greater moral and emotional burdens on dirty workers).

⁴⁰⁰ Giarratano, *supra* note 133, at 196.

⁴⁰¹ Michael Mello, *Another Attorney for Life*, in *FACING THE DEATH PENALTY*, *supra* note 41, at 81, 87 (“I found that the real target of my rage was myself as a participant in the system of legal homicide. I am a participant who advocates for the condemned, but a participant nonetheless.”); Canan, *supra* note 133, at 74–80 (lawyer’s experience of client’s execution); Sarah Ottinger, *Representing Robert Sawyer*, in *MACHINERY OF DEATH*, *supra* note 65, at 262–66 (attorney required mental health treatment in part based on her work in capital cases); Eisner, *Carrying*, *supra* note 70 (describing the impact of executions on lawyers and law clerks); Marco Poggio, *Living With Death: How Judges Experience Capital Cases*, LAW360 (Mar. 22, 2024), <https://www.law360.com/articles/1807341/living-with-death-how-judges-experience-capital-cases> (describing judicial experiences with the death penalty). Richard Stetler, who filmed Robert Harris’s execution by court order, described the ordeal as “horrific” and said he felt “soiled” afterward. LIFTON & MITCHELL, *supra* note 22, at 188; see also Pilkington, *Eight Executions*, *supra* note 112 (describing nightmares a media witness experienced after a gas execution); Seal et al., *supra* note 26, at 255–56 (public information officers describing their distress associated with witnessing executions).

⁴⁰² Margaret Vandiver, *Coping With Death*, in *FACING THE DEATH PENALTY*, *supra* note 41, at 123, 123–35; SHARP, *supra* note 390, at 85–99; Bud Welch, *Speaking Out Against the Execution of Timothy*

additional scrutiny and legal recognition.⁴⁰³ These arguments may also reach other areas of the criminal legal system. Capital punishment does offer a bright line to avoid the slippery slope argument—death is different, after all. But maybe we shouldn’t avoid the slippery slope. If understanding that capital punishment and punishment work is damaging to *everyone* involved, including punishers, is likely to destabilize the criminal legal system, that suggests a larger systemic problem with the way we punish.⁴⁰⁴

The problem of punishers’ mental health and secondary trauma is not limited to capital punishment. The U.S. prison system, as a whole, is not designed to produce meaningful rehabilitation or support for people convicted of crimes and the conditions are often shockingly inhumane.⁴⁰⁵ The way that a state treats the people it incarcerates can also harm the people who do the state’s work.⁴⁰⁶ COs as a whole are more likely to suffer PTSD than the general population and have higher rates of suicide.⁴⁰⁷

Conditions of confinement complaints could draw on arguments about punishers’ dignity, stigma, and moral injury. Indifference to the well-being of incarcerated people harms those who care for them. Improving prison conditions benefits the people who are incarcerated and prison employees.⁴⁰⁸

Two developments in Texas illustrate how more humane treatment may benefit incarcerated persons *and* COs. First, since the late 1990s, people on death row in Texas have been held in isolation.⁴⁰⁹ COs had complained about death row conditions in 2014 and called for reforms because solitary confinement made their

McVeigh, in *MACHINERY OF DEATH*, *supra* note 65, at 275, 275–87; Rick Rojas, *He Couldn’t Get Alabama to Spare His Mother’s Killer, but Still Found Peace*, N.Y. TIMES (Sept. 25, 2025), https://www.nytimes.com/2025/09/25/us/alabama-execution-william-berry-geoffrey-west.html?unlocked_article_code=1.ok8.ba-2.TJ9dNOTuIVls&smid=url-share.

⁴⁰³ Cf. Diamantis, *supra* note 195, at 2088 (offering abolitionist arguments centered on concern for police mental health).

⁴⁰⁴ Cf. *McCleskey v. Kemp*, 481 U.S. 279, 339 (1987) (Brennan, J., dissenting) (“Taken on its face, such a statement seems to suggest a fear of too much justice.”).

⁴⁰⁵ Shaila Dewan, *More Freedom, Less Violence: Some States Look to European Prisons*, N.Y. TIMES (July 25, 2025), <https://www.nytimes.com/2025/07/25/us/prison-improvements-oklahoma-germany.html>.

⁴⁰⁶ CABANA, *supra* note 56, at 81 (pointing out that legislative indifference to prison conditions “failed to recognize that prison employees had to endure the same harsh conditions as the inmates”).

⁴⁰⁷ Hannaford, *supra* note 133; Cioffi, *supra* note 286, at 135 (discussing occupational stress associated with prison employment).

⁴⁰⁸ See Keri Blakinger, *No Shackles, No Cuffs: Texas Death Row Loosens Solitary Confinement for First Time in Years*, HOUSTON CHRON. (July 16, 2025), https://www.houstonchronicle.com/news/investigations/article/texas-death-row-solitary-group-recreation-20398075.php?utm_source=TMP-Newsletter&utm_campaign=0c720f8011-EMAIL_CAMPAIGN_2025_07_17_10_42&utm_medium=email&utm_term=0_5e02cdad9d-0c720f8011-170572641; Dewan, *supra* note 405; PRESS, *supra* note 18, at 72 (discussing the importance of dignity for both prisoners and staff at Norwegian prisons).

⁴⁰⁹ See Blakinger, *supra* note 408.

work more dangerous.⁴¹⁰ COs described repetitive strip-searching as an unpleasant and degrading task and acknowledged it was “dehumanizing” for prisoners.⁴¹¹ Recently, Texas prison officials tested a new approach: prisoners on death row with good behavior records could interact with each other in common spaces.⁴¹² This has benefited the people on death row and prison staff.⁴¹³ Second, many Texas prisons do not have air conditioning, which has led to the deaths of incarcerated people and seriously harmed employees.⁴¹⁴ Texas legislators recognized these harms years ago, but were unable to effectuate change.⁴¹⁵ When a federal court ruled that those conditions violated the Eighth Amendment, it considered the impact on *both* incarcerated people and COs—the state’s awareness of harms to employees made the harm to prisoners all the more evident.⁴¹⁶ Demonstrating the negative effects of incarceration work on workers strengthens claims about the harms of incarceration.

Assessing cruel effects of punishment beyond the impact on the punished better illuminates the harms associated with capital punishment and systems of incarceration. Recognizing these harms and tracing them back to their source—state authority—offers new paths to challenge state cruelty.

V. CONCLUSION

Cruelty deserves a broader understanding than the one that the Supreme Court and other courts have assigned to it. The source of cruelty is the state, rather than the people who become its instruments. The practices of state institutions reflect awareness of, and in some cases indifference to, the collateral harms that may occur as a cost of inflicting capital punishment.

The people involved in executions may come to regret their participation or question the utility of capital punishment. Their dirty work, which fulfills public demand and legislative vision, is salient because of the nature of their experience. Systems that rely on “dirty work” are frequently sustained by institutional cruelty—structures that encourage and facilitate moral disengagement and tolerance of harmful and foreseeable effects. Recognizing and responding to these forms of cruelty in punishment means that assessing the effects on the people who carry out these

⁴¹⁰ Christopher Zoukis, *Texas Prison Guard Union Urges Death Row Reforms*, PRISON LEGAL NEWS (Sept. 25, 2015), <https://www.prisonlegalnews.org/news/2015/sep/25/texas-prison-guard-union-urges-death-row-reforms/>.

⁴¹¹ Hannaford, *supra* note 133; PRISON GUARDS AND THE DEATH PENALTY, *supra* note 112, at 1 (describing Texas COs’ attempts to improve prison conditions because harsh conditions increased threats COs faced and harmed their dignity).

⁴¹² Blakinger, No Shackles, *supra* note 408.

⁴¹³ *Id.* (quoting a TCDJ spokesperson who said it was better for staff).

⁴¹⁴ Tiede v. Collier, No. 1:23-CV-1004-RP, 2025 WL 2469118, at *6–18 (W.D. Tex. Mar. 26, 2025); Stephen Simpson & Pooja Salhotra, *House Panel Passes Bill Requiring Air Conditioning in Texas Prisons by 2032*, TEX. TRIB. (Apr. 4, 2025), <https://www.texastribune.org/2025/04/04/texas-prison-air-conditioning-bills/>.

⁴¹⁵ Tiede, 2025 WL 2469118, at *27–28; Simpson & Salhotra, *supra* note 414.

⁴¹⁶ Tiede, 2025 WL 2469118, at *17–19 & *33.

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punishments. The death penalty is cruel, to the people who are put to death, to the people who carry it out, and to the people whose lives are affected by it.